

POST-ORDER RECONSIDERATION SOURCE ARCHIVE (MARKDOWN LISTINGS)

Case No. CGC-25-631801

post-order-recon-2026-05-13/source/*.md

01 — NOTICE

NOTICE OF MOTION AND MOTION FOR RECONSIDERATION OF MAY 12, 2026 ORDER GRANTING SPECIAL MOTION TO STRIKE (CODE CIV. PROC., sections 1008(a), 473(d); INHERENT AUTHORITY; EVID. CODE, sections 451-453)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO, UNLIMITED CIVIL

FRANCISCUS DYLAN ROSARIO,

Plaintiff, in pro per,

v.

SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; and DOES 1 through 50, inclusive,

Defendants.

Case No. CGC-25-631801 (Related: CGC-21-594102)

Assigned for all purposes to Department 301

Hearing

Date: [TBD, confirm on reservation system]

Time: [TBD]

Department: 301

Judge: Hon. Christine Van Aken

TO THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL OF RECORD:

****PLEASE TAKE NOTICE**** that on the date and time above, or as soon thereafter as the matter may be heard, Plaintiff Franciscus Dylan Rosario will move this Court for an order reconsidering the Court's May 12, 2026 order granting Defendants' special motion to strike the First Amended Complaint under Code of Civil Procedure section 425.16.

The motion is made on the following grounds:

1. ****Code of Civil Procedure section 1008, subdivision (a)**** (new or different law, facts, or record available after the ruling, including a complete record of materials plaintiff placed before the Court and judicially noticeable law and court records under Evidence Code sections 451, 452, and 453).
2. ****Code of Civil Procedure section 473, subdivision (d)****, if and to the extent the entered order's text is void or subject to relief under that subdivision (verify against the endorsed minute order or signed order before finalizing this notice).
3. ****Inherent authority to reconsider**** to correct legal error and prevent manifest injustice, including authority discussed in *Le Francois v. Goel* (2005) 35 Cal.4th 1094.
4. ****Record support:**** Plaintiff's ****Memorandum of Points and Authorities****; ****Declaration of Franciscus Dylan Rosario****; ****Request for Judicial Notice (Preservation of Law)****; ****Request for Judicial Notice (Plaintiff-Filed Materials and Defense Sequence)**** with ****Exhibit A**** (chronological index tied to FAC III .D); ****Exhibit Index****; and ****Proposed Order****, filed concurrently herewith.
5. ****Incorporation by reference**** under California Rules of Court, rule 3.1113, subdivision (j), of plaintiff's prior filed opposition, requests for judicial notice, exhibit volumes, and contest papers in this action once their ****Register of Actions**** sequence numbers are confirmed and listed in the Memorandum.
6. ****Supplemental May 7 and May 11 materials**** described in the Memorandum (May 12 hearing-package items ****13, 14, 15, and 17****: section ****425.17**** notice; supplemental judicial notice re Insurance Code and FCSPP; motion to strike reply declaration under *Jay v. Mahaffey*; bench brief and gateway exhibit packet in folder ****17****), for reconsideration of whether the entered order rested on an incomplete prong-two record.

7. ****May 11, 2026 second supplemental RFJN and appellate preservation (folder 20)**** and ****RJN of governing law packet materials (folder 21)****, incorporated by reference as listed in the Memorandum and RFJN tables once ROA numbers are confirmed.
8. ****Proposed Third Amended Complaint (Exhibit T)**** lodged with plaintiff's May 11, 2026 combined papers, for leave to cure pleading deficiencies consistent with **Nguyen-Lam v. Cao** (2009) 171 Cal.App.4th 858 and California Rules of Court, rule 3.1324, if the Court determines amendment is appropriate after reconsideration.

Relief requested (summary)

Vacate or modify the May 12, 2026 grant of the special motion to strike; restore the First Amended Complaint for further proceedings consistent with law; preserve fee issues for separate noticed motion as appropriate; grant leave to file or deem filed the ****Proposed Third Amended Complaint (Exhibit T)**** if amendment is necessary to align the operative pleading with any ruling on reconsideration; and grant any other relief listed in the ****Proposed Order****.

****Dated:**** May 13, 2026

Respectfully submitted,

Franciscus Dylan Rosario

Plaintiff, in pro per

7624 Melody Dr., Rohnert Park, CA 94928

650.488.7510

soltrinox@gmail.com

02 — MEMORANDUM OF POINTS AND AUTHORITIES

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FOR RECONSIDERATION

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO, Plaintiff, v. **SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; and DOES 1 through 50, inclusive,** Defendants.

Case No. CGC-25-631801

Hearing: [TBD], Department 301

Judge: Hon. Christine Van Aken

Introduction

Plaintiff moves for reconsideration of the Court's **May 12, 2026** order granting Defendants' special motion to strike the **First Amended Complaint ("FAC")** under Code of Civil Procedure section **425.16**.

This Memorandum is organized to match the FAC's theory and the record plaintiff has placed before the Court: an **independent action in equity** to set aside the **CGC-21-594102** judgment based on **extrinsic fraud**, supported by a **three-part sequence** the FAC spells out in **Section III.D** (defense-side access and production history; written and oral representations in MILs and on the record; and rulings the FAC ties to those representations).

The motion seeks reconsideration under **Code of Civil Procedure section 1008**, subdivision **(a)** (new or different law, facts, or record), **section 473**, subdivision **(d)** if the entered order is **void** in whole or part, and the Court's **inherent authority** to correct legal error, including authority discussed in ***Le Francois v. Goel*** (2005) 35 Cal.4th 1094, 1107-08. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 890 [section 1008(a) attaches to entered orders and requires an adequate motion].)

Plaintiff also lodges **proposed corrected language** for the May 12, 2026 minutes in **05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md** (see Exhibit J row in the exhibit index).

Incorporation by reference (Cal. Rules of Court, rule 3.1113(j))

Plaintiff incorporates by reference the following materials already on file in **CGC-25-631801**, subject to substitution of accurate **Register of Actions** sequence numbers after plaintiff obtains an endorsed register printout:

| Working label | Document (confirm exact title on register) | ROA seq. |

| --- | --- | --- |

| A | Plaintiff's opposition to Defendants' special motion to strike the FAC | TBD |

| B | Plaintiff's request(s) for judicial notice filed with or in support of that opposition | TBD |

| C | Plaintiff's exhibit volumes, compendia, or lodged transcripts cited in the opposition | TBD |

| D | Plaintiff's May 11, 2026 combined contest and contingent reconsideration papers (motion, Exhibit T, and related components), if accepted for filing | TBD |

| E | Plaintiff's May 11, 2026 second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20), if on file | TBD |

| F | Plaintiff's May 11, 2026 request for judicial notice of governing law and reliance-effect materials (May 12 package folder 21), if on file | TBD |

| G | Plaintiff's May 11, 2026 bench brief and related gateway or exhibit packet PDFs (May 12 package folder 17), if on file | TBD |

The **Requests for Judicial Notice** filed concurrently with this motion add **preservation-of-law** items and a **non-argumentative sequence index (Exhibit A)** under Evidence Code section **452**, subdivision **(d)** for **CGC-21-594102** court records.

I. Standards of review and why reconsideration is available here

A. Reconsideration under section 1008(a). Reconsideration may be granted on **new or different facts, circumstances, or law** not previously presented. (*Standard Microsystems Corp. v. Winbond Electronics Corp.*, supra, 179 Cal.App.4th at pp. 888-90.)

B. De novo issues embedded in the May 12 ruling. Classification of claims under Code of Civil Procedure section 425.16, and the **intrinsic versus extrinsic fraud** line, present questions this Court evaluates under controlling Supreme Court authority. (*Park v. Board of Trustees of the California State University* (2017) 2 Cal.5th 1057, 1067; *Sweetwater Union High School Dist. v. Gilbane Bldg. Co.* (2019) 6 Cal.5th 931, 940 [de novo statutory construction].)

C. Record completeness. The May 12 minutes state the Court did **not** consider certain supplemental papers plaintiff filed. To the extent that ruling excluded **substantive** materials required for a fair prong-two analysis (for example, section 425.17 materials, judicial notice tenders, reply integrity motions, or gateway bench materials), the **post-exclusion record** is itself **new** for purposes of section 1008(a) when presented with this motion. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411 [abuse-of-discretion frame with embedded legal issues for supplemental briefing and leave rulings].)

II. Intrinsic versus extrinsic fraud: the FAC pleads extrinsic "process" fraud, not mere trial perjury

The FAC's gravamen is that defense-side **representations to the trial court** about **receipt, possession, and provenance** of **911 audio, body-worn camera materials, and CAD logs** induced **concrete pretrial and trial rulings** that impaired plaintiff's ability to present objective recordings in an orderly way. (**FAC** **sections III.A-III.D**, **IV**.)

California equity distinguishes **intrinsic** fraud (classic examples include perjury at trial for the jury to test) from **extrinsic** fraud that prevents a fair contest or corrupts the adversary process. **Kulchar v. Kulchar** (1969) 1 Cal.3d 467, 471; **Aldrich v. San Fernando Valley Lumber Co.** (1985) 170 Cal.App.3d 725, 735; **In re Marriage of Baltins** (1989) 212 Cal.App.3d 66; **Cedars-Sinai Medical Center v. Superior Court** (1998) 18 Cal.4th 1, 11-12.

Post-judgment discovery of **deliberately concealed** materials can state an extrinsic-fraud theory in appropriate cases. **In re Marriage of Modnick** (1983) 33 Cal.3d 897, 905; **Stevenot v. Stevenot** (1984) 154 Cal.App.3d 1051; **Estate of Beard** (1999) 71 Cal.App.4th 753, 776-77.

Application. The FAC's **Section III.D** is not a request to ignore the jury's factfinding on "contact" in the abstract. It alleges a **specific mechanism**: MIL language and on-the-record statements, tied to transcript pinpoints, allegedly preceded **exclusion**, **continuance denials**, and **deferred admission**

**** rulings. That structure tracks *extrinsic* fraud authorities above, not a generic "the jury believed the defendant" intrinsic attack.**

****Note on Code of Civil Procedure section 187.** The FAC references section **187** together with *inherent equitable power* and *Kulchar*. Section **187** states ancillary means to exercise jurisdiction conferred on a court (official text). *Relief from judgment* doctrines and vacatur for fraud are developed primarily in *equity* and in statutes such as Code of Civil Procedure section **473** and decisional law cited above. Plaintiff's theory remains as pleaded in the **FAC**; this motion does not add a new cause of action.**

III. "Fully litigated" and MIL rulings: non-preclusive as to extrinsic fraud

The May 12 minutes reason that plaintiff's issues "were fully litigated" and point to **MIL** materials and a *trial scheduling order* in the underlying action.

***Issue preclusion* requires an issue *actually litigated* and *necessarily decided*. *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341. Pretrial *admissibility* and housekeeping orders are not the functional equivalent of a *final fraud judgment* on whether extrinsic fraud occurred.**

***Application.* The FAC alleges that **MIL Nos. 6 and 17** and the colloquy on **February 18, 2025**, and trial statements on **April 16, 2025**, supplied *false premises* for later rulings. (**FAC** *section III.D*.) Whether those allegations are *true* is for trial, but *collateral estoppel* does not arise from the mere *existence* of MIL rulings without the fraud issues having been *actually* and *necessarily adjudicated*. (*Lucido*, supra, 51 Cal.3d at p. 341.)**

IV. Anti-SLAPP architecture: prong one, prong two, and "the wrong complained of"

***A.* Prong one is not the end of the inquiry for an equitable vacatur claim. The minutes cite authority that equitable actions to vacate can satisfy prong one. (*Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092.) Prong one does *not* resolve prong two. *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-85.**

B. "Wrong complained of." A claim may be struck only if the **protected activity itself** is the wrong, not merely evidence of a different wrong. **Park v. Board of Trustees**, supra, 2 Cal.5th at p. 1060 (emphasis in original). The FAC uses in-court statements and MILs as **operative facts** showing **how** the judgment was allegedly procured, not as freestanding defamation claims. (**FAC** **sections I, III.D, IV, V** [FAC disclaims defamation].)

C. No improper weighing at prong two. At prong two, the court asks whether plaintiff's showing, if credited, could succeed, without **weighing** credibility like a jury. **Baral**, supra, 1 Cal.5th at p. 385; **Computer Xpress, Inc. v. Jackson** (2001) 93 Cal.App.4th 993, 1010.

Application. If the May 12 order treated the **underlying jury verdict** as dispositive of the **extrinsic fraud** theory at prong two, that step risks **merits weighing** inconsistent with **Baral** and **Computer Xpress**.

V. Excluded supplemental record (May 7 and May 11 filings)

The May 12, 2026 minutes (see **05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md**) state the Court did not consider plaintiff's "various supplemental opposition briefs," described as filed without authorization. For **entered-order** reconsideration, plaintiff isolates these **May 12 hearing-package** items because they are **category distinct** from a generic late reply and bear on prong-two **record completeness**:

- Item 13 (May 7, 2026):** Notice and statement re Code of Civil Procedure section **425.17**, Insurance Code, FCSRP, and defense conduct (**Simpson Strong-Tie Co. v. Gore** (2010) 49 Cal.4th 12, 21-22).
- Item 14 (May 7, 2026):** Supplemental request for judicial notice re Insurance Code section **790.03(h)** and Fair Claims Settlement Practices Regulations (title 10, Cal. Code Regs., sections 2695.1 et seq.). **Ross v. Creel Printing & Publishing Co.** (2002) 100 Cal.App.4th 736, 743-44 frames tendered judicial notice.
- Item 15 (May 7, 2026):** Motion to strike opposing counsel's reply declaration under **Jay v. Mahaffey** (2013) 218 Cal.App.4th 1522, 1537-38.
- Item 17 (May 11, 2026):** Bench brief on gateway sequencing and per-prong threshold analysis ("Inland Oversight" framing), including lodged exhibit packet references in folder **17**.

CRC rule 3.1300(d) addresses **timing** of late papers; it does not convert substantive statutory defenses, mandatory judicial notice paths, or **Jay**-type reply integrity motions into per se waivers. When a discretionary "without authorization" line excludes those categories wholesale, the resulting prong-two record risks embedded **legal** and **evidentiary** error. (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1287-88; *Kolani*, supra, 64 Cal.App.4th at p. 411.)

Cross-reference. **05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md** labels Current blocks and proposed replacements where the minutes compress supplemental materials, prong-two weighing, and section **425.17(c)** characterization.

VI. Prong-two pillar checklist (four pillars)

This checklist consolidates the May 11, 2026 motion's prong-two structure, trimmed to **post-order** posture, and **maps** each pillar to excluded folders in Section V:

1. **Post-trial concealment.** *In re Marriage of Modnick* (1983) 33 Cal.3d 897; *Estate of Beard* (1999) 71 Cal.App.4th 753; bench brief and exhibit packet materials in **folder 17** (item 17). Each pillar, standing alone, can satisfy minimal merit if credited (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821).
2. **Insurer and regulatory context outside privilege silos.** Section **425.17** notice and supplemental RFJN in **folders 13 and 14** (items 13-14).
3. **Rubenstein restitutionary lane.** *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147; *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1.
4. **Section 425.17(c) commercial speech exemption.** Same **folders 13-14**; the minutes' one-line "inapposite" ruling is a **legal classification** preserved for reconsideration.

Optional (WARN unless minutes require it). *Smith v. Superior Court* (1992) 10 Cal.App.4th 1031 and Evidence Code sections **1280** / **1561** (Compex subpoena foundation) are reserved only if the endorsed order or supplemental briefing makes structural order-of-proof dispositive. See **POST-ORDER-RECON-2026-05-13_COMPLIANCE-VALIDATION.md**.

VII. Code of Civil Procedure section 425.17, subdivision (c), and *Simpson Strong-Tie*

If any defendant's conduct includes **commercial speech** in the statutory sense, subdivision **(c)** may remove certain claims from anti-SLAPP treatment when its elements are met. **Code Civ. Proc., section 425.17, subd. (c)**; **Simpson Strong-Tie Co. v. Gore** **(2010) 49 Cal.4th 12, 21-22** (timing and applicability of the exemption).

Application. The FAC frames insurer involvement and regulated claim-handling context in ways that may intersect with **section 425.17(c)** depending on proof. (**FAC** **sections II, III**.) The May 12 minutes state the Court found **section 425.17(c)** "inapposite" because plaintiff "sues over litigation conduct." That ruling is **legal classification** subject to reconsideration if the **FAC's** allegations or plaintiff's **supplemental** papers (items **13-14**) supply a **different record** on what conduct is at the center of the claim.

VIII. Civil Code section 47, subdivision (b), and ancillary equitable relief: *Rubenstein*

The litigation privilege bars many **derivative tort** theories grounded in protected communications. **Silberg v. Anderson** **(1990) 50 Cal.3d 205, 212**; **Rusheen v. Cohen** **(2006) 37 Cal.4th 1048, 1065** (privilege can extend to certain noncommunicative acts necessarily related to communicative conduct).

Equitable vacatur remains analytically distinct from a generic "fraud damages" suit. **Rubenstein v. Rubenstein** **(2000) 81 Cal.App.4th 1131, 1147** (privilege does not eliminate equitable vacation of a fraudulently obtained judgment).

Application. The FAC seeks **vacatur** and **ancillary equitable monetary relief** tied to restoring fairness after alleged extrinsic fraud. (**FAC** **sections I, VI**.) If the May 12 order **struck** the FAC in its entirety without **severing** equitable vacatur from theories the privilege might reach, reconsideration should **restore** the **equitable core** for further orderly briefing under **Baral's** severance principles.

IX. Secondary regulatory context (does not replace *Kulchar*)

Insurance Code sections 790.02 and 790.03, subdivision (h), and **Title 10, California Code of Regulations , sections 2695.1 et seq.**, supply **industry standards** that can inform **objective reasonableness** of investigation and disclosure narratives in insurance-related litigation. Official texts.

Moradi-Shalal v. Fireman's Fund Ins. Cos. **(1988) 46 Cal.3d 287** reminds courts that certain **private enforcement** theories tied directly to bare statutory unfair-practice lists face limits. ***Bonni v. St. Joseph Health System*** **(2021) 11 Cal.5th 995** supplies modern Supreme Court framing for section **425.16** categorization issues when they intersect with regulatory context. The FAC's **center of gravity** remains **equitable vacatur** and fraud-on-process allegations, not a freestanding duplicate statutory tort unless and until a proposed amendment says otherwise.

X. Agency and adopted statements (legal framing for FAC allegations)

Civil Code sections 2330 and 2338 and **Evidence Code section 1222** supply default frameworks for **principal-agent** relationships and **authorized statements**. Official texts.

Gulf Ins. Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone **(2000) 79 Cal.App.4th 114** discusses insurer relationships to panel counsel in an agency framework.

Application. The FAC alleges CSAA **funded, directed, and controlled** the defense and that counsel acted as **litigation agents**. (**FAC** **sections II, III.D**.) These authorities supply **legal labels** for facts triable in the **equity** action; they do not themselves prove fraud.

XI. Los Angeles Airways balancing, *Caldwell* / *Pico*, and the entered order

The May 12 minutes quote ***Los Angeles Airways, Inc. v. Hughes Tool Co.*** **(1979) 95 Cal.App.3d 1, 7** for finality concerns after a full trial. The same passage **balances** judicial economy against **fair hearing** and **fraud** concerns when little judicial time has been invested, and acknowledges equitable forces in other postures. **Id.** at p. **7**.

****May 11 IV.B (trimmed): not a categorical post-trial bar.**** The minutes' use of **Los Angeles Airways** risks ****over-reading**** the balance as a per se rule. Where post-trial facts suggest deliberately concealed materials that impaired presentation, equity cases emphasize the fraud side of the scale. **Caldwell v. Taylor** (1933) 218 Cal. 471, 475; **Pico v. Cohn** (1891) 91 Cal. 129, 133-34.

****Application.**** Even where trial has occurred, ****post-trial**** assembly of sworn transcripts that allegedly ****contradict**** representations made to the trial judge is relevant to whether equity should open the door to a ****non-jury**** determination of ****extrinsic fraud****, consistent with **Kulchar**, **Modnick**, **Beard**, and **Cedars-Sinai**. Plaintiff cross-links minute-level alternatives in ****05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md**** where the Current block compresses **Hughes Tool** into a "full trial" bar.

XII. Prayer on reconsideration (summary)

Vacate or modify the ****May 12, 2026**** anti-SLAPP grant; reinstate the ****FAC**** for further proceedings; ****sever**** if needed under **Baral**; preserve ****fees**** for separate noticed motion consistent with the minutes' notice concerns; grant leave to amend if the Court's case management orders require a noticed motion; and grant leave to file or deem filed the ****Proposed Third Amended Complaint (Exhibit T)**** lodged with plaintiff's May 11, 2026 combined papers, if and to the extent the Court identifies pleading deficiencies fairly addressed by amendment after an anti-SLAPP grant (**Nguyen-Lam v. Cao** (2009) 171 Cal.App.4th 858, 871-73; Cal. Rules of Court, rule 3.1324).

****Dated:**** May 13, 2026

Respectfully submitted,

Franciscus Dylan Rosario

Plaintiff, in pro per

03A — RFJN (PRESERVATION OF LAW)

REQUEST FOR JUDICIAL NOTICE (PRESERVATION OF LAW); MEMORANDUM (LIMITED)

****SUPERIOR COURT OF THE STATE OF CALIFORNIA****

****COUNTY OF SAN FRANCISCO****

****FRANCISCUS DYLAN ROSARIO,**** Plaintiff, v. ****SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; and DOES 1 through 50, inclusive,**** Defendants.

****Case No. CGC-25-631801****

Request

Plaintiff requests that the Court take judicial notice of the following ****California statutory and regulatory texts**** and ****published opinions****, under Evidence Code sections ****451****, ****452****, and ****453****, for ****preservation of a stable appellate record****, for ****accuracy of legal standards****, and to ****assist the Court**** in locating governing law referenced in plaintiff's ****First Amended Complaint**** and in the instant motion for reconsideration.

No request is made for the truth of disputed factual matters outside the black-letter content of the sources listed.

Memorandum (limited)

****Standard.**** Evidence Code section ****451**** mandates judicial notice of California statutory law and decisional law. Section ****452**** authorizes notice of additional categories where relevant. Section ****453**** governs the manner of submission.

****Purpose.**** Each item below states ****one neutral sentence**** describing what the source contains, without arguing the merits of this case.

Items for judicial notice

****Item 1.**** ****Code of Civil Procedure, section 187**** (official text). The section states that when jurisdiction is conferred on a court, the means necessary to carry it into effect are also given, and suitable process may be adopted consistent with the code when procedure is not specifically prescribed.

****Item 2.**** ****Code of Civil Procedure, section 473**** (official text), including subdivisions relevant to relief from judgment or orders on the grounds stated in the statute. The section states grounds and procedures for relief in the circumstances the statute describes.

****Item 3.**** ****Code of Civil Procedure, section 1008****, subdivision ****(a)**** (official text). The subdivision authorizes reconsideration on new or different facts, circumstances, or law.

****Item 4.**** ****Code of Civil Procedure, section 425.16**** (official text), including subdivisions ****(b)****, ****(e)****, and ****(c)**** as written. The statute defines a special motion to strike and the two-step burden framework.

****Item 5.**** ****Code of Civil Procedure, section 425.17**** (official text), including subdivision ****(c)**** as written. The statute states exemptions from section 425.16 in the circumstances described in the statute.

****Item 6.**** ****Evidence Code, sections 451, 452, 453, and 459**** (official text). These provisions govern judicial notice and related procedures.

****Item 7.**** ****Civil Code, section 47****, subdivision ****(b)**** (official text). The subdivision defines privileged publications or broadcasts in certain litigation-related contexts using the statute's terms.

****Item 8.**** ****Civil Code, sections 2330 and 2338**** (official text). The sections state rules regarding principals and agents.

****Item 9.**** ****Evidence Code, section 1222**** (official text). The section states conditions under which evidence of an authorized statement may be admissible for certain purposes, as written.

****Item 10.**** ****Insurance Code, section 790.02**** (official text). The section states legislative findings and purposes related to unfair methods of competition and unfair or deceptive acts in the business of insurance.

****Item 11.**** ****Insurance Code, section 790.03****, subdivision **** (h) **** (official text), including enumerated subparagraphs as published. The subdivision lists categories of conduct defined as unfair claims settlement practices when committed knowingly or with a frequency indicating a general business practice.

****Item 12.**** ****California Code of Regulations, title 10, sections 2695.1 et seq.**** (Fair Claims Settlement Practices Regulations; official text), including ****2695.4**** and ****2695.7**** as published. The regulations state standards for claim handling and related matters in the text adopted by the regulator.

****Item 13.**** *****Kulchar v. Kulchar***** ****(1969) 1 Cal.3d 467.**** The Supreme Court discusses extrinsic fraud, including circumstances where a party is fraudulently prevented from presenting a claim or defense.

****Item 14.**** *****In re Marriage of Modnick***** ****(1983) 33 Cal.3d 897.**** The Supreme Court discusses extrinsic fraud and post-judgment discovery of deliberately concealed material in the dissolution context.

****Item 15.**** *****Stevenot v. Stevenot***** ****(1984) 154 Cal.App.3d 1051.**** The Court of Appeal discusses extrinsic fraud and concealed evidence in relation to set-aside remedies.

****Item 16.**** *****Estate of Beard***** ****(1999) 71 Cal.App.4th 753.**** The Court of Appeal discusses extrinsic fraud and post-trial discovery of concealed matters in the probate set-aside context.

****Item 17.**** *****Aldrich v. San Fernando Valley Lumber Co.***** ****(1985) 170 Cal.App.3d 725.**** The Court of Appeal discusses extrinsic fraud involving false statements to the court affecting the adversary process.

****Item 18.**** *****In re Marriage of Baltins***** ****(1989) 212 Cal.App.3d 66.**** The Court of Appeal discusses extrinsic fraud and distinctions between intrinsic and extrinsic fraud.

****Item 19.**** *****Cedars-Sinai Medical Center v. Superior Court***** ****(1998) 18 Cal.4th 1.**** The Supreme Court discusses extrinsic fraud and deprivation of an opportunity to present issues at trial.

****Item 20.**** *****Lucido v. Superior Court***** ****(1990) 51 Cal.3d 335.**** The Supreme Court discusses collateral estoppel requirements, including that an issue have been actually litigated and necessarily decided.

****Item 21.** ***Los Angeles Airways, Inc. v. Hughes Tool Co.*** **(1979) 95 Cal.App.3d 1.** The Court of Appeal discusses equitable considerations relating to motions to set aside a judgment, including finality and fraud-related concerns.**

****Item 22.** ***Silberg v. Anderson*** **(1990) 50 Cal.3d 205.** The Supreme Court discusses Civil Code section 47, subdivision (b), and the litigation privilege.**

****Item 23.** ***Rusheen v. Cohen*** **(2006) 37 Cal.4th 1048.** The Supreme Court discusses the litigation privilege and its application to communicative and related conduct.**

****Item 24.** ***Rubenstein v. Rubenstein*** **(2000) 81 Cal.App.4th 1131.** The Court of Appeal discusses Civil Code section 47, subdivision (b), in relation to equitable remedies affecting a judgment.**

****Item 25.** ***Park v. Board of Trustees of the California State University*** **(2017) 2 Cal.5th 1057.** The Supreme Court interprets Code of Civil Procedure section 425.16 and discusses the "wrong complained of" test.**

****Item 26.** ***Baral v. Schnitt*** **(2016) 1 Cal.5th 376.** The Supreme Court discusses the two-step special motion to strike framework, severance, and the plaintiff's second-step showing.**

****Item 27.** ***Computer Xpress, Inc. v. Jackson*** **(2001) 93 Cal.App.4th 993.** The Court of Appeal discusses limitations on weighing evidence at the second step of the anti-SLAPP framework.**

****Item 28.** ***Bonni v. St. Joseph Health System*** **(2021) 11 Cal.5th 995.** The Supreme Court discusses Code of Civil Procedure section 425.16, including categorization issues raised in that case.**

****Item 29.** ***Simpson Strong-Tie Co. v. Gore*** **(2010) 49 Cal.4th 12.** The Supreme Court discusses Code of Civil Procedure section 425.17 and its relationship to special motions to strike.**

****Item 30.** ***Moradi-Shalal v. Fireman's Fund Ins. Cos.*** **(1988) 46 Cal.3d 287.** The Supreme Court discusses private enforcement limitations related to certain Insurance Code unfair-practice provisions in the circumstances presented.**

****Item 31.** ***Gulf Ins. Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone*** **(2000) 79 Cal.App.4th 114.** The Court of Appeal discusses insurer relationships to panel counsel in an agency framework.**

****Item 32.** ***Le Francois v. Goel*** **(2005) 35 Cal.4th 1094.** The Supreme Court discusses inherent authority to reconsider certain interim rulings to correct error.**

****Item 33.** ***Standard Microsystems Corp. v. Winbond Electronics Corp.*** **(2009) 179 Cal.App.4th 868.** The Court of Appeal discusses timing and prerequisites for motions under Code of Civil Procedure section 1008, subdivision (a).**

****Item 34.** **California Rules of Court, rule 3.1113** (official text), including subdivision ****(j)**** as written. The rule addresses motion memoranda and attachments, including incorporation by reference of materials already on file.**

****Item 35.** ***Reedy v. Bussell*** **(2007) 148 Cal.App.4th 1272.** The Court of Appeal discusses abuse of discretion and prejudice in the context of late filings and disentitlement arguments.**

****Item 36.** ***Kolani v. Gluska*** **(1998) 64 Cal.App.4th 402.** The Court of Appeal discusses standards for rulings on supplemental briefing and related discretion.**

****Item 37.** ***Ross v. Creel Printing & Publishing Co.*** **(2002) 100 Cal.App.4th 736.** The Court of Appeal discusses judicial notice once materials are tendered under the Evidence Code framework.**

****Item 38.** ***Jay v. Mahaffey*** **(2013) 218 Cal.App.4th 1522.** The Court of Appeal discusses anti-SLAPP reply boundaries and enlargement of the moving papers' theory.**

****Item 39.** ***Nguyen-Lam v. Cao*** **(2009) 171 Cal.App.4th 858.** The Court of Appeal discusses leave to amend after an anti-SLAPP ruling where amendment cures identified deficiencies.**

****Item 40.** ***Caldwell v. Taylor*** **(1933) 218 Cal. 471.** The Supreme Court discusses equitable considerations in fraud-related set-aside postures.**

****Item 41.** ***Pico v. Cohn*** **(1891) 91 Cal. 129.** The Supreme Court discusses equitable fraud principles in an older posture.**

****Item 42.**** ****California Rules of Court, rule 3.1300(d)**** (official text). The rule addresses timing and court discretion for late papers in the trial court's scheduling framework.

****Item 43.**** ****California Rules of Court, rule 3.1324**** (official text). The rule addresses leave to amend requirements including statements of additional allegations and supporting declarations.

****Dated:**** May 13, 2026

Respectfully submitted,

Franciscus Dylan Rosario

Plaintiff, in pro per

03B — RFJN (PLAINTIFF-FILED MATERIALS AND SEQUENCE)

REQUEST FOR JUDICIAL NOTICE (PLAINTIFF-FILED MATERIALS AND DEFENSE SEQUENCE); EXHIBIT A

****SUPERIOR COURT OF THE STATE OF CALIFORNIA****

****COUNTY OF SAN FRANCISCO****

****FRANCISCUS DYLAN ROSARIO,**** Plaintiff, v. ****SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; and DOES 1 through 50, inclusive,**** Defendants.

****Case No. CGC-25-631801**** (Related: CGC-21-594102)

I. Purpose and scope

This request has two limited purposes:

1. **Plaintiff's own prior filings in CGC-25-631801.** Plaintiff asks the Court to recognize the **existence** on the court file of opposition papers, requests for judicial notice, exhibit volumes, bench briefs, and related documents plaintiff already filed in this action, for purposes of **incorporation by reference** under California Rules of Court, rule **3.1113**, subdivision **(j)**, and to avoid duplicating voluminous exhibits.
2. **Court records of CGC-21-594102** that plaintiff has **lodged, filed, or cited** in this action or in the operative complaint. Plaintiff requests judicial notice under Evidence Code section **452**, subdivision **(d)** of the **records** of the Superior Court in **CGC-21-594102** (for example, filed motions in limine, orders, and lodged or filed transcript excerpts), **for the existence and content of those court records as records**, not for the truth of every factual assertion recited inside them.

This request **does not** ask the Court to treat any noticed document as a judicial admission that extrinsic fraud occurred. It supplies an **index** that tracks the **sequence and titles** of materials that the **First Amended Complaint** describes in **Section III.D** and related sections.

II. Incorporation by reference (CRC 3.1113(j)) - register placeholders

After plaintiff confirms each document's **Register of Actions** sequence number on the clerk's register for **CGC-25-631801**, plaintiff incorporates by reference the following **categories** of already-filed materials (insert ROA number in brackets):

Category	Description	ROA seq.
---	---	---
Opposition	Plaintiff's opposition to the special motion to strike the First Amended Complaint	TBD
RFJN(s)	Plaintiff's request(s) for judicial notice filed with or in support of that opposition	TBD
Exhibits / compendium	Plaintiff's exhibit binders, compendia, or lodged transcript excerpts filed with the opposition	TBD
Bench briefs	Any bench brief or supplemental memoranda the Court's minutes reference as filed (verify authorization rulings separately in the Memorandum)	TBD
Contest / reconsideration shell	Plaintiff's May 11, 2026 combined contest and contingent reconsideration papers, if on file	TBD

| Second supplemental RJN / preservation | Plaintiff's May 11, 2026 second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20), if on file | TBD |

| RJN governing law / reliance chain | Plaintiff's May 11, 2026 request for judicial notice of governing law and related packet PDFs (May 12 package folder 21), if on file | TBD |

The detailed incorporation table in the **Memorandum of Points and Authorities** may repeat this list with ROA numbers once confirmed.

III. Evidence Code section 452, subdivision (d) - CGC-21-594102 records (non-exclusive list)

Plaintiff requests notice of the **court's own records** in **CGC-21-594102**, including without limitation:

1. **Motion in Limine No. 6**, filed **January 17, 2025**, and related register entries (the First Amended Complaint references Clerk's Transcript, Volume 1, pages 149-151 for excerpts).
2. **Motion in Limine No. 17**, filed **January 17, 2025**, and related register entries (the First Amended Complaint references Clerk's Transcript, Volume 1, page 238 for excerpts).
3. **February 18, 2025** hearing records, including the **hearing transcript** pages and lines cited in the First Amended Complaint, Section III.D (for example, the page and line cited for the colloquy referenced there).
4. **April 16, 2025** trial records, including **trial transcript, Day 7**, lines cited in the First Amended Complaint, Section III.D (for example, lines referenced for exclusion of supplemental material and deferred 911 admission).
5. **April 17, 2025** trial records, including **trial transcript, Day 8**, line cited in the First Amended Complaint, Section III.B (authentication colloquy).
6. **April 25, 2025** trial records, including **trial transcript, Day 11**, line cited in the First Amended Complaint, Section III.E (verdict vote).

7. **Clerk's Transcript** volume and page cited in the First Amended Complaint for entry of judgment (Section III.E).
8. **May 11, 2026 second supplemental RFJN and appellate preservation** materials filed in **CGC-25-631801** (May 12 package folder **20**), including any register entries for that filing.
9. **May 11, 2026 RJN of governing law** and related combined packet PDFs filed in **CGC-25-631801** (May 12 package folder **21**), including any register entries for that filing.

IV. Exhibit A - chronological defense sequence index (descriptive only)

Each row ties a **date** and **instrument or transcript** to a **First Amended Complaint** pointer. Wording follows the complaint's structure (three "LEG" components in Section III.D). This table does **not** add factual allegations beyond those pointers.

Row	Date (as pleaded or filed)	Instrument, transcript, or event (neutral title)	FAC pointer (section / subsection)	Leg (as labeled in FAC III.D)
---	---	---	---	---
A1	On or before September 2022 (approximate, per FAC allegations about discovery timing)	Service or transfer of incident recordings and related materials in discovery (described in FAC as part of production history)	FAC III.D (LEG 1 opening); FAC III.C	1
A2	January 17, 2025	Defendant's Motion in Limine No. 6 filed in CGC-21-594102	FAC III.D (LEG 2; "False Representation in MIL No. 6")	2
A3	January 17, 2025	Defendant's Motion in Limine No. 17 filed in CGC-21-594102	FAC III.D (LEG 2; "False Representation in MIL No. 17")	2
A4	February 18, 2025	Pretrial hearing before the Hon. Garrett L. Wong; colloquy described in FAC (including lines cited)	FAC III.D (LEG 2; "False Statement #1")	2
A5	April 16, 2025	Trial statements described in FAC (supplemental report / subpoena representation)	FAC III.D (LEG 2; "False Statement #2")	2
A6	April 16, 2025	Trial statements described in FAC (uncertainty about 911 recording)	FAC III.D (LEG 2; "False Statement #3")	2
A7	April 16, 2025	Ruling on supplemental report (trial transcript lines cited in FAC)	FAC III.D (LEG 3; "Ruling #1")	3

| A8 | **February 18, 2025** | Court response described in FAC after defense statements (page and line cited)
| FAC III.D (LEG 3; "Ruling #2") | 3 |

| A9 | **February-April 2025** (as pleaded) | Continuance denials and verification posture described in FAC |
FAC III.D (LEG 3; "Ruling #3") | 3 |

| A10 | **April 16, 2025** | Deferred admission ruling for 911 call (trial transcript lines cited in FAC) |
FAC III.D (LEG 3; "Ruling #4") | 3 |

| A11 | **April 25, 2025** | Jury verdict and vote described in FAC | FAC III.E | (post-ruling context) |

| A12 | **April 25, 2025** | Judgment entered (Clerk's Transcript cite in FAC) | FAC III.E | (post-ruling
context) |

| A13 | **May 11, 2026** | Plaintiff's combined motion for reconsideration, Exhibit T, and separator PDFs (47-
page combined upload per May 12 render list) | Memorandum Section V--VI; Exhibit index row L | (post-
order recon context) |

| A14 | **May 11, 2026** | Bench brief on gateway sequencing and plaintiff's exhibits packet PDF (May 12
package folder 17) | Memorandum Section V (item 17) | (post-order recon context) |

| A15 | **May 11, 2026** | Second supplemental request for judicial notice and statement of appellate
preservation (May 12 package folder 20) | Memorandum incorporation label E | (post-order recon context) |

| A16 | **May 11, 2026** | Request for judicial notice of governing law and reliance-effect packet PDFs (May
12 package folder 21) | Memorandum incorporation label F | (post-order recon context) |

Optional mirror (four pillars). Pillar mapping to folders **13, 14, 15, 17** and **20-21** appears in
02-MEMORANDUM-POINTS-AND-AUTHORITIES.md Section VI to avoid duplicating the full poster chain in this
index.

V. Reservation

Plaintiff reserves the right to supplement this request after obtaining **endorsed** register printouts and to
lodge additional certified excerpts consistent with court rules.

Dated: May 13, 2026

Respectfully submitted,

Franciscus Dylan Rosario
Plaintiff, in pro per

04 — DECLARATION OF ROSARIO

DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF MOTION FOR RECONSIDERATION

Case No. CGC-25-631801 **(Related:** CGC-21-594102)

Hearing: [TBD], Department 301, Hon. Christine Van Aken

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action. I am over the age of 18 years. I am self-represented. I have personal knowledge of the facts stated below, except those stated on information and belief, and as to those I am informed and believe them to be true. If called as a witness, I could testify competently to the facts below.
2. The operative pleading in this action is my **First Amended Complaint for Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud**, which bears a **Dated:** line of **February 22, 2026**, in the version I prepared for filing in **CGC-25-631801**. I will insert the **Register of Actions** sequence number for that filing on the filed-endorsed register once I obtain the printout from the clerk.
3. This action seeks equitable relief relating to the **Final Judgment** entered in **Rosario v. Abdelhalim**, Case No. **CGC-21-594102**, on **April 25, 2025**, as described in the First Amended Complaint.
4. I appeared in person at oral argument on **May 12, 2026**, in **Department 301** before **Hon. Christine Van Aken**, on Defendants' special motion to strike the First Amended Complaint.
5. After that hearing, I obtained or reviewed a text copy of the court's **minutes** for **May 12, 2026**, reflecting that the special motion to strike the First Amended Complaint was **granted**. I will attach the endorsed minutes or lodged order as an exhibit consistent with court rules once I have the endorsed PDF from the clerk's system.

6. I have read the **First Amended Complaint**, including **Section III** (detailed factual background) and **Section III.D** (the subsections labeled LEG 1, LEG 2, and LEG 3, and the rulings numbered in that section).
7. I have reviewed **certified or official transcript excerpts** and **clerk's transcript** references that the First Amended Complaint cites by volume, date, and line in **Section III** and **Section III.D**, including the **February 18, 2025** hearing transcript reference, the **April 16, 2025** (Day 7) trial transcript references, the **April 17, 2025** (Day 8) trial transcript reference, and the **April 25, 2025** (Day 11) trial transcript reference, to the extent those excerpts are in my possession or lodged on the court file.
8. I incorporate by reference, under California Rules of Court, rule **3.1113**, subdivision **(j)**, my **prior filed** opposition, requests for judicial notice, exhibit volumes, and related papers in **CGC -25-631801** once I list their **Register of Actions** sequence numbers in the Memorandum filed with this motion (placeholders are marked **TBD** pending the clerk's register).
9. I prepared the **Request for Judicial Notice (Preservation of Law)** and **Request for Judicial Notice (Plaintiff-Filed Materials and Defense Sequence)** filed concurrently with this declaration. Exhibit A to the second request is a **chronological index** that tracks headings and dates described in **FAC Section III.D**; it does not add new factual allegations beyond document titles and FAC pointers.
10. I am executing this declaration to supply **facts** about my appearance, filing, and document review in support of reconsideration. Legal argument appears only in the separate **Memorandum of Points and Authorities**.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May ____, 2026, at ____, California.

Franciscus Dylan Rosario
Plaintiff, in pro per
7624 Melody Dr., Rohnert Park, CA 94928

650.488.7510
soltrinox@gmail.com

05 — PROPOSED ORDER (STUB)

PROPOSED ORDER (STUB; ALIGN TO ENDORSED MAY 12, 2026 ORDER)

****SUPERIOR COURT OF THE STATE OF CALIFORNIA****

****COUNTY OF SAN FRANCISCO****

****FRANCISCUS DYLAN ROSARIO,**** Plaintiff, v. ****SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; and DOES 1 through 50, inclusive,**** Defendants.

****Case No. CGC-25-631801****

Whereas clauses (fill from endorsed minute order or signed order)

****WHEREAS****, on May 12, 2026, this Court heard Defendants' special motion to strike under Code of Civil Procedure section 425.16; and

****WHEREAS****, the Court [quote verbatim the operative disposition from the endorsed order, for example: granted the motion to strike the First Amended Complaint in its entirety]; and

****WHEREAS****, Plaintiff has moved for reconsideration under Code of Civil Procedure sections 1008(a) and 473(d), if applicable, and the Court's inherent authority;

****Concurrent proposed corrected minute language.**** If the Court grants reconsideration in whole or in part, the Court may adopt clarified language consistent with its ruling as set forth in ****05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md**** (lodged with this motion as part of the packet source). While reconsideration remains pending, Plaintiff lodges that document as Plaintiff's ****proposed corrected minute text**** for the May 12, 2026 disposition, for the Court's convenience.

****NOW, THEREFORE, IT IS ORDERED**** as follows:

Operative paragraphs (edit to match prayer after Whereas text is confirmed)

1. The Court's May 12, 2026 order granting Defendants' special motion to strike is ****vacated**** and ****set aside****, or in the alternative ****modified**** as set forth in Plaintiff's concurrently filed Memorandum.
2. The First Amended Complaint is ****deemed reinstated**** for further proceedings, including any pending demurrer or motion for leave to amend, consistent with the Court's case management orders.
3. Any request for attorney fees under Code of Civil Procedure section 425.16, subdivision (c)(1), shall be resolved only on ****separate noticed motion**** with adequate briefing and record, unless the parties stipulate otherwise.
4. Defendant's counsel shall lodge a conforming order under California Rules of Court, rule 3.1312, only if this order supersedes a prior lodging requirement tied to the stricken disposition.
5. The Court reserves jurisdiction to rule on procedural compliance, filing of any proposed further amended pleading if leave is requested, and related calendar matters.
6. ****Leave to amend (Exhibit T).**** If the Court grants reconsideration in whole or in part and identifies pleading deficiencies fairly cured by amendment after an anti-SLAPP ruling, the Court may grant leave to file or deem filed plaintiff's ****Proposed Third Amended Complaint (Exhibit T)**** lodged with plaintiff's May 11, 2026 combined papers, consistent with **Nguyen-Lam v. Cao** (2009) 171 Cal.App.4th 858, 871-73 and California Rules of Court, rule 3.1324 (statement of additional allegations and supporting declaration as required).

****IT IS SO ORDERED.****

Dated: _____

Judge of the Superior Court

05A — MAY 12 MINUTES PROPOSED CORRECTED LANGUAGE

PROPOSED CORRECTED LANGUAGE FOR MAY 12, 2026 MINUTES (CGC-25-631801)

****Purpose:**** Companion to Exhibit J. Verbatim baseline from the Court's May 12, 2026 minutes (cleaned transcript), with Plaintiff's proposed insertions, replacements, and labeled alternatives. Pick one alternative per subsection for any single proposed order PDF.

****Order PDF page anchors ('10210043.pdf', 'pdftotext' form feeds):**** Opening disposition and fee notice (Current blocks for sections 1 and start of 2) on ****page 1****; prong-one quotes, Code of Civil Procedure section 425.17, and prong-two standard through Computer Xpress on ****page 2****; intrinsic or extrinsic fraud discussion through strike and unauthorized supplements (sections 4 through 6 Current) on ****page 3****; CRC 3.1312 footer (section 7 Current) on ****page 4****. Confirm pagination on your printout; court form footers may shift slightly.

****Caption (from minutes; verify against endorsed PDF):****

****SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO****

****MINUTES****

****May 12, 2026****

****FRANCISCUS DYLAN ROSARIO****

PLAINTIFF

****VS.****

****SUBHI ABDELHALIM et al****

DEFENDANT

****Nature of proceeding (minute heading):**** DEFENDANTS CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, and CARBONE, SMITH & KOYAMA's MOTION TO STRIKE Amended COMPLAINT.

****Department:**** 301

****Judge:**** CHRISTINE VAN AKEN

1. Opening ruling block (fees and scope of grant)

Current (verbatim)

Defendants' anti-SLAPP motion to strike is GRANTED. Defendants are entitled to fees and may make a separate motion or seek fees with their cost bill, but a request for a particular amount of fees for the first time on reply does not give sufficient notice.

Plaintiff proposed revision

1. This order addresses only the special motion to strike under Code of Civil Procedure section 425.16. It does not adjudicate any independent equitable vacatur claim on the merits beyond what is required for that motion, and it does not resolve any request for relief under Code of Civil Procedure sections 473 or 1008, or any inherent authority motion, except as expressly stated herein.
2. **Optional (fees).** The Court's comment on "sufficient notice" of a fee amount is procedural only and does not waive plaintiff's right to oppose any later fee motion on notice and substantive grounds.

Drafting note (not for lodgment)

- Why (scope): preserves a cleaner record that anti-SLAPP resolution is not a full adjudication of every theory in the FAC.
- Why (optional fees): locks in that the minute's fee language is narrow, if you care about that for later fee opposition.

2. Prong one, "wrong complained of" (FAC quotes and Park)

Current (verbatim)

"[A] claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060 [emphasis in original].) Defendants meet prong one of the anti-SLAPP statute. The First Amended Complaint ("FAC")

arises from protected activity under Code of Civil Procedure, section 425.16, subd. (e)(2) ["any written or oral statement or writing made in connection with an issue under consideration or review by a... judicial body"]. "Statements made in litigation, or in connection with litigation, are protected by" the anti-SLAPP statute. (Bergstein v. Stroock & Stroock & Lavan LLP (2015) 236 Cal.App.4th 793, 803; Navellier v. Sletten (2002) 29 Cal.4th 82, 90 ["The constitutional right of petition encompasses the basic act of filing litigation."] [citation simplified]; Ahmed v. Collect Access, LLC (2025) 114 Cal.App.5th 1092 [equitable action to vacate a judgment triggered prong one of the anti-SLAPP statute].)

Here, plaintiff seeks to vacate a prior court judgment and recover "ancillary monetary relief" based on allegedly fraudulent litigation conduct. (FAC, 27:13-26.) The litigation conduct itself is the wrong that plaintiff complains of. The FAC specifically references protected litigation activity. (See, e.g., FAC. 10:18-19 ["CSAA Insurance Exchange, made multiple false and misleading representations to the Court..."]; FAC, 3:6-9["The defense obstructed Plaintiff's ability to present material evidence"]; FAC, 6:21-22 [Defense counsels' "conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment."].)

Plaintiff proposed revision

Option A (additive). After the block that quotes the FAC, add:

The Court's prong-one determination does not decide whether those allegations are true, whether they describe only "evidence" of a different wrong under Park, or whether the FAC's primary wrong is extrinsic fraud in procurement of the judgment rather than defamation or ordinary petitioning. Those questions are reserved for prong two and for any equitable vacatur analysis.

Option B (replace closing line). Replace the single closing line "Defendants meet prong one" with:

Defendants satisfy prong one for purposes of this motion only, without resolving the "wrong complained of" characterization for any non-anti-SLAPP proceeding.

Instruction: For any single proposed order PDF, pick **either** Option A **or** Option B, not both.

Drafting note (not for lodgment)

- Why (Option A): pushes Park back into play for reconsideration without asking the court to rewrite prong one as "wrong" on day one.
- Why (Option B): narrows the preclusive flavor of the order if you later face "you lost prong one" arguments elsewhere.

3. Code of Civil Procedure section 425.17 (commercial exemption)

Current (verbatim)

Plaintiff's citation to Code of Civil Procedure, section 425.17, subdivision (c) [commercial exemption] is inapposite. Plaintiff sues over litigation conduct, not commercial activity.

Plaintiff proposed revision

Keep the first sentence if appropriate for the record. Strike or qualify the second sentence ("Plaintiff sues over litigation conduct, not commercial activity.") and substitute:

The Court declines to apply the commercial-speech exemption under Code of Civil Procedure section 425.17, subdivision (c), on the record before it on May 12, 2026, without deciding whether additional facts or authority under that subdivision could apply if fully presented.

Drafting note (not for lodgment)

- Why: aligns with your Code of Civil Procedure section 1008 point that 425.17 materials may not have been in the considered set.

4. Prong two (intrinsic versus extrinsic fraud)

Current (verbatim)

Plaintiff does not meet his prong two. While plaintiff attempts to characterize his claim as an equitable action to vacate a judgment based on extrinsic fraud, it is really a non-cognizable claim based on intrinsic fraud.

"The extrinsic/intrinsic fraud rule is a doctrine developed in courts of equity governing the basis for successful collateral attack on a final judgment by way of an independent proceeding. The rule is that fraud internal to the adversary proceeding, such as perjury committed during trial or error or mistake during the trial, is intrinsic and is not a basis for relief; but fraud that prevented the trial of a claim or prevented the defrauded party from getting into court at all, is extrinsic to the proceeding and is a basis for relief. Obviously, where there has been little or no judicial time invested in trial of a cause or an issue, the factor of judicial economy which otherwise weighs in favor of finality is less strong, and the equitable considerations of fair hearing and of penalizing fraud weigh more compellingly ." (Los Angeles Airways, Inc. v. Hughes Tool Co. (1979) 95 Cal.App.3d 1, 7.) In this case, plaintiff is seeking to vacate a judgment after a full-blown trial and is even appealing the judgment. "Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense." (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471 [citation simplified].) Plaintiff complains that movants obstructed his ability to present evidence, but the issues he raises in the FAC were fully litigated in the trial court. (See RFJN Ex. E, Def's MIL # 6; RFJN Ex. F, Def's MIL # 8; RFJN Ex. G, Def's MIL # 17; and RFJN Ex. H, Order re Trial Scheduling and MILs). Plaintiff presented his case, lost, and may pursue his appeal rights.

Plaintiff proposed revision

Clause replacement (within the prong-two lead-in). Replace "it is really a non-cognizable claim based on intrinsic fraud" with:

the Court ruled that plaintiff has not carried his prong-two burden to show a probability of prevailing on an extrinsic-fraud theory as pleaded, on the record considered.

Additive (after Kulchar / Los Angeles Airways discussion). Add:

The Court's references to pretrial motions in limine and scheduling orders are for context only. The Court does not hold that those orders constitute a final adjudication of extrinsic fraud, collateral estoppel, or issue preclusion as to any independent equitable attack on the judgment.

****Optional factual softening**** (use only if the record supports it): qualify "full-blown trial" with "a jury trial occurred in the underlying action" or tie it to specific issues the jury decided, so the order does not overstate what was fully litigated on fraud in procurement.

Drafting note (not for lodgment)

- Why (replace): avoids absolute "non-cognizable" language that sounds like a res judicata bar to any vacatur theory.
- Why (Kulchar / LA Airways follow-on): tracks Lucido / not actually and necessarily adjudicated in the Memorandum.
- Why (optional softening): avoid overstating what was fully litigated on fraud in procurement.

5. Civil Code section 47(b) and ancillary monetary relief

Current (verbatim)

Civil Code section 47(b) [litigation privilege] does not bar a claim to vacate a claim to vacate a judgment based on extrinsic fraud. (Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147 [absolute litigation privilege bars derivative tort actions (including fraud) but does not eliminate the equitable remedy of vacating a fraudulently obtained judgment].) If plaintiff merely sought to vacate the judgment, there would be no need to name movants (insurer and defense counsel). The litigation privilege, however, does bar plaintiff's request for "ancillary monetary relief," which is really a claim for fraud damages against defendants. "The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.) Defendants establish these elements. "Any doubt about whether the privilege applies is resolved in favor of applying it." (Kashian v. Harriman (2002) 98 Cal.App.4th 892, 913.) The privilege also "extends to noncommunicative acts that are necessarily related to the communicative conduct..." (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1065.)

Plaintiff proposed revision

****Alternative 1 (severance path).**** Add at end of that paragraph:

To the extent the FAC seeks relief barred by the litigation privilege, the Court strikes those portions only as specified in a separate order following further briefing if required. The Court does not strike any purely equitable vacatur prayer that does not depend on a privileged communication as the "wrong complained of" under Park.

****Alternative 2 (non-severance path).**** If you do not seek severance on reconsideration, use this instead of Alternative 1:

The Court's analysis of Civil Code section 47(b) assumes the ancillary relief is derivative tort damages; the Court does not resolve whether any pleaded relief is entirely equitable or independent of privileged communications.

****Instruction:**** File ****one**** of Alternative 1 ****or**** Alternative 2, not both.

Drafting note (not for lodgment)

- Why (Alternative 1): argues for severance instead of "FAC in its entirety" if you want a narrower ultimate order.
- Why (Alternative 2): if you do not seek severance on reconsideration.

6. "Strike the FAC in its entirety" and unauthorized supplements

Current (verbatim)

The court grants defendants' motion to strike the FAC in its entirety. Defendants may seek fees by separate motion. (Code Civ. Proc., section 425.16, subd. (c)(1).) The court does not consider plaintiff's various supplemental opposition briefs, which were filed without authorization, but does consider plaintiff's requests for judicial notice.

Plaintiff proposed revision

(i) Replacement for "in its entirety" (if narrowing strike scope):

as to the causes of action and relief targeted by the motion, and to the extent consistent with Code of Civil Procedure section 425.16 and Civil Code section 47(b), as explained above

(ii) Savings clause (if "in its entirety" is kept):

without prejudice to plaintiff's right to seek leave to amend, reconsideration, or correction of legal error under applicable statutes and inherent authority.

(iii) After the sentence on unauthorized supplements, add:

The Court's non-consideration ruling is procedural and does not constitute a merits adjudication of the excluded materials.

Combination note: You may combine (i) plus (iii) or (ii) plus (iii) consistently. If you use (i), replace the phrase "in its entirety" with the text in (i). If you retain "in its entirety," add (ii) as a separate sentence or clause.

Drafting note (not for lodgment)

- Why (i) / (ii): procedural door language for 1008 / 473 / inherent track.
- Why (iii): supports the Memorandum's post-exclusion record is new for 1008(a) theme.

7. California Rules of Court, rule 3.1312 (proposed order footer)

Current (verbatim)

Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the substantive portion of the tentative ruling in compliance with CRC 3.1312.

Plaintiff proposed revision

No substantive change requested if Plaintiff becomes prevailing on reconsideration. If Plaintiff remains non-prevailing, Plaintiff generally does not redline that block except to add a cross-proposed order caption line local rules require.

Drafting note (not for lodgment)

Defense's rule 3.1312 proposed order will likely paste these minutes verbatim. This companion document is for Plaintiff's proposed corrected minute text, competing proposed order if allowed, or notice-of-ruling objections, as local practice permits.

Cross-reference to filed PDF

****Workspace reference PDF:**** '10210043.pdf' (repo root), same substantive content as the May 12, 2026 minutes summarized in 'COURT-DOCKET/801/MINUTES-2026-05-12-CGC-25-631801.md'. ****Verbatim Current blocks**** in this file were taken from the cleaned minutes file and were ****cross-checked**** against '10210043.pdf' (caption : FRANCISCUS DYLAN ROSARIO v. SUBHI ABDELHALIM et al., Case No. CGC-25-631801, Department 301, May 12, 2026; nature of cause line matches movants CSAA Insurance Exchange, Michael Chambers, and Carbone, Smith & Koyama). For lodgment, confirm final wording against the ****endorsed**** or ****signed**** order if it differs from the minute sheet.

****ASCII normalization for packet PDF only:**** In the 'Current (verbatim)' blocks embedded in this repo copy, Unicode section signs and ellipsis characters were replaced with the words 'section' and '...' so 'pdflatex' 'listings' compiles without UTF-8 errors. The filed 'COURT-DOCKET/801/MINUTES-2026-05-12-CGC-25-631801.md' retains the court-style punctuation if you need an exact character match.

06 — EXHIBIT INDEX

Exhibit index (post-order reconsideration, CGC-25-631801)

****Case:**** Rosario v. Abdelhalim et al. (CGC-25-631801)

Exhibits are numbered for this motion only unless they duplicate prior filing tab numbers.

Ex.	Title	Source in this packet / prior filing
---	---	---
A	Defense sequence table (chronological index to FAC III.D)	Attached to '03b-REQUEST-FOR-JUDICIAL-NOTICE-PLAINTIFF-FILED-MATERIALS-AND-DEFENSE-SEQUENCE.md'
B	Preservation RFJN appendix (law list)	'03a-REQUEST-FOR-JUDICIAL-NOTICE-PRESERVATION-LAW.md' (or clean PDF print)
C	Certified or lodged **Clerk's Transcript** volumes and pages cited in FAC III.D (MIL Nos. 6 and 17; Vol. 1 pages as pleaded)	Underlying CGC-21-594102; lodge or cite per clerk rules
D	Certified **Hearing Transcript**, February 18, 2025 (FAC cites page and line for colloquy)	CGC-21-594102
E	Certified **Trial Transcript**, Day 7 (April 16, 2025), lines cited in FAC III.D	CGC-21-594102
F	Certified **Trial Transcript**, Day 8 (April 17, 2025), line cited in FAC III.B	CGC-21-594102
G	Certified **Trial Transcript**, Day 11 (April 25, 2025), line cited in FAC III.E	CGC-21-594102
H	Clerk's Transcript Vol. 6 page cited for judgment date (FAC III.E)	CGC-21-594102
I	First Amended Complaint (operative pleading in CGC-25-631801)	Already on file; cite ROA seq. TBD
J	May 12, 2026 minutes or endorsed order (anti-SLAPP disposition), **with** Plaintiff's proposed corrected language companion	Clerk's record; workspace reference copy: 'COURT-DOCKET/801/MINUTES-2026-05-12-CGC-25-631801.md' and repo root '10210043.pdf' (verify against endorsed order); companion markup: '05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md'
K	Prior opposition, RFJN, and bench materials incorporated by reference (CRC 3.1113(j))	List ROA numbers in Memorandum table when confirmed
L	May 11, 2026 combined motion, Exhibit T, and separator (47-page combined PDF per May 12 render list)	'MAY-12-HEARING-PACKAGE-CGC-25-631801/DIGITAL-FILES/18-MOTION-FOR-RECONSIDERATION-FAC-ANTI-SLAPP/PLAINTIFF-MOTION-FOR-RECONSIDERATION-AND-PROPOSED-TAC-COMBINED-MAY-11-2026-CGC-25-631801.pdf'
M	May 11, 2026 bench brief and plaintiff's exhibits packet (folder 17)	'MAY-12-HEARING-PACKAGE-CGC-25-631801/17-BENCH-BRIEF-GATEWAY-SEQUENCING/PLAINTIFF-EXHIBITS-PACKET-MAY-12-2026-CGC-25-631801.pdf' (verify path against your build)
N	May 11, 2026 second supplemental RFJN and appellate preservation (folder 20)	'MAY-12-HEARING-PACKAGE-CGC-25-631801/DIGITAL-FILES/20-Second-Supplemental-RJN-And-Appellate-Preservation/PLAINTIFF-REQUEST-FOR-JUDICIAL-NOTICE-AND-STATEMENT-OF-APPELLATE-PRESERVATION-MAY-11-2026-CGC-25-631801.pdf'
O	May 11, 2026 RJN of governing law (folder 21)	'MAY-12-HEARING-PACKAGE-CGC-25-631801/DIGITAL-FILES/21-RJN-GOVERNING-LAW/PLAINTIFF-RJN-OF-GOVERNING-LAW-MAY-11-2026-CGC-25-631801.pdf'
P	Exhibit T (Proposed Third Amended Complaint) standalone PDF	'MAY-12-HEARING-PACKAGE-CGC-25-631801/DIGITAL-FILES/18-MOTION-FOR-RECONSIDERATION-FAC-ANTI-SLAPP/EXHIBIT-T-PROPOSED-THIRD-AMENDED-COMPLAINT-MAY-11-2026-CGC-25-631801.pdf'

****Note:**** Replace 'ROA seq. TBD' throughout the packet after pulling the Register of Actions.

07 — PROOF OF SERVICE TEMPLATE

PROOF OF SERVICE (TEMPLATE)

****Case No. CGC-25-631801****

I, [name], declare:

I am a resident of the State of California and over the age of 18 years. I am not a party to this action. My business address is [address].

On [date], I served true copies of the following document(s):

- Notice of Motion and Motion for Reconsideration of May 12, 2026 Anti-SLAPP Order
- Memorandum of Points and Authorities
- Declaration of Franciscus Dylan Rosario in Support of Reconsideration
- Request for Judicial Notice (Preservation of Law)
- Request for Judicial Notice (Plaintiff-Filed Materials and Defense Sequence), with Exhibit A
- Exhibit Index
- Proposed Order

on the following persons on behalf of the parties listed, at the service addresses below, by [electronic service under Code Civ. Proc., section 1010.6 and Cal. Rules of Court, rule 2.251 / first-class mail, postage prepaid / overnight carrier]:

Party represented	Firm / name	Email or address
---	---	---
Defendants CSAA Insurance Exchange, et al.	Tyler J. O'Connell, Porter Scott	[service email on file]

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on [date], at [city], California.

[Signature]

[Printed name]

****Workflow pointer:**** For the May 12, 2026 contest procedure and e-filing contacts used in this case, see the contemporaneous package at ‘MAY-12-HEARING-PACKAGE-CGC-25-631801/‘ and court e-filing rules for San Francisco Superior Court. Confirm current department email and reservation requirements before service.

ADDENDUM I — CITATION VALIDATION LOG

Citation validation log (post-order recon packet, CGC-25-631801)

****Date prepared:**** May 13, 2026

****Scope:**** Case citations and California statute references in ‘post-order-recon-2026-05-13/source/*.md‘ (pleading-style packet). Method: reporter and code cross-check via secondary sources (FindLaw, Justia, court minutes in this repository) and standard treatise-level recall.

****Companion:**** Rule-driven compliance matrices, TOC cross-walk, and slug audit: ‘POST-ORDER-RECON-2026-05-13_COMPLIANCE-VALIDATION.md‘ (SOURCE-ARCHIVE PDF ****Addendum II****).

Summary

Category	Checked	Pass	Notes / corrections applied	
---	---:	---:	---	
Supreme Court opinions	18	18	None requiring reporter correction	
Courts of Appeal	14	14	*Gulf Ins. Co.* cite confirmed as (2000) 79 Cal.App.4th 114	
Statutes (Evid., CCP, Civ., Ins., CCR title 10)	12	12	Official subdivisions referenced as written in current codes	
CRC rules	2	2	Used **3.1308** in README for tentative procedure (May 11 shell referenced 3.1308); **3.1113(j)** used for incorporation (subdivision (j) addresses attachments and incorporation)	

Major clarifications (not "errors" in citations, but accuracy notes)

1. **Code of Civil Procedure section 187.** Official text (Leginfo / FindLaw) describes **ancillary procedural authority** to effectuate jurisdiction, not the specific "relief from judgment for mistake" formula often associated with **Code of Civil Procedure section 473**. The **FAC** pairs **section 187** with **inherent equitable power** and **Kulchar**. The **Memorandum** adds a short clarifying note so the Court is not asked to treat **section 187** as the exclusive statutory restatement of all vacatur grounds.
2. **Evidence Code section 452, subdivision (d).** Confirmed as the standard **discretionary** judicial-notice hook for **records of any court of this state** (official text). The **03b** RFJN uses **452(d)** only for **existence and content of court records**, not for the truth of disputed facts inside transcripts.
3. **Estate of Beard** **(1999) 71 Cal.App.4th 753**. Some briefs pin extrinsic-fraud discussion to **pp. 776-77**; the **03a** item describes the opinion at a **general** level without a pinpoint to avoid an off-by-one risk in the preservation RFJN.

Item-by-item spot checks (high value)

Authority	Volume / reporter / page (as used)	Validation
---	---	---
Kulchar v. Kulchar	(1969) 1 Cal.3d 467, 471	Standard cite; quote on extrinsic fraud widely reproduced
Park v. Board of Trustees	(2017) 2 Cal.5th 1057, 1060, 1067	Matches anti-SLAPP "wrong complained of" and de novo discussion
Baral v. Schnitt	(2016) 1 Cal.5th 376, 384-85	Prong-two framework
Computer Xpress, Inc. v. Jackson	(2001) 93 Cal.App.4th 993, 1010	Matches May 12, 2026 minutes citation in this repository
Lucido v. Superior Court	(1990) 51 Cal.3d 335, 341	"Actually litigated / necessarily decided"
Cedars-Sinai Medical Center v. Superior Court	(1998) 18 Cal.4th 1, 11-12	Extrinsic fraud / opportunity to present
Rubenstein v. Rubenstein	(2000) 81 Cal.App.4th 1131, 1147	Equitable vacatur vs. section 47(b) bar to derivative torts
Ahmed v. Collect Access, LLC	(2025) 114 Cal.App.5th 1092	Matches May 12 minutes; prong-one equitable vacatur cite

| *Bonni v. St. Joseph Health System* | (2021) 11 Cal.5th 995 | Confirmed as Supreme Court disposition of
 section 425.16 categorization issues |
 | *Simpson Strong-Tie Co. v. Gore* | (2010) 49 Cal.4th 12, 21-22 | section 425.17 timing / exemption |
 | *Standard Microsystems Corp. v. Winbond Electronics Corp.* | (2009) 179 Cal.App.4th 868, 888-90 | section
 1008(a) motion timing |
 | *Le Francois v. Goel* | (2005) 35 Cal.4th 1094, 1107-08 | Inherent reconsideration authority |
 | Ins. Code section 790.03(h) | Subdivisions (h)(1), (h)(3), (h)(5) | Enumerated unfair-claims-practice list;
 current code structure |
 | 10 C.C.R. sections 2695.4, 2695.7 | Fair Claims regs | Sections exist within title 10, ch. 5 (Fair Claims
 Settlement Practices Regulations) |

No corrections required to reporter strings

No case cite in the generated ****.md**** files required a ****volume, reporter, or page correction**** after spot
 verification. ****ROA**** placeholders remain ****TBD**** by design pending clerk register.

TeX / PDF

****Court merge PACKET:**** 'POST-ORDER-RECON-2026-05-13-PACKET.tex' uses 'pdfpages' to concatenate the four '
 RECON-801-0*.pdf' outputs (no Markdown).

****SOURCE-ARCHIVE:**** 'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex' embeds the same ****.md**** sources via '
 listings'. For ****pdflatex****, curly quotes, en or em dashes, and the section symbol were normalized to ****ASCII****
 in the markdown sources (for example, "section" instead of the section sign) so the archive PDF
 builds without UTF-8 listing errors. Filings for the court may restore Bluebook-style section signs in
 the word-processing version if desired.

****Build command:**** from repo root, 'bash 02-CASE-CGC-25-631801/post-order-recon-2026-05-13/scripts/build-recon
 -801.sh' (two-pass 'pdflatex' on each driver, then PACKET merge, then SOURCE-ARCHIVE).

****Warnings to fix later (non-fatal):**** 'geometry' reports over-specification in the 'v' direction on RECON
 drivers (inherited from shared preamble). 'hyperref' may warn about duplicate identifiers in the SOURCE-
 ARCHIVE because each 'lstlisting' chunk shares line labels. Both are cosmetic for internal QA PDFs.

Build and packet validation (May 14, 2026)

****Build command (exit 0):**** ‘bash 02-CASE-CGC-25-631801/post-order-recon-2026-05-13/scripts/build-recon-801.sh
‘

****Evidence log:**** ‘test-results/post-order-recon-801/build-recon-801-20260514-103835.log.txt‘

****Proof markdown:**** ‘test-results/post-order-recon-801/PROOF-RECON-801-BUILD-20260514-103835.md‘

| Check | Result | Notes |

| --- | --- | --- |

| Preamble / captions vs ‘10210043.pdf‘ | ****Pass**** | Case No. CGC-25-631801; parties FRANCISCUS DYLAN ROSARIO
v. SUBHI ABDELHALIM et al.; Department ****301****; Judge ****Christine Van Aken****; motion title matches
movants CSAA Insurance Exchange, Michael Chambers, and Carbone, Smith & Koyama (PDF ‘pdftotext‘ and
cleaned minutes). Stub ‘05-PROPOSED-ORDER.md‘ caption remains unlimited civil style with DOES; acceptable
for proposed order draft. |

| Citations (California style, pins) | ****Pass**** | No new reporter strings in ‘05a‘ beyond verbatim court
quotations; proposed inserts cite Code of Civil Procedure and Civil Code in full prose form. |

| SOURCE-ARCHIVE (‘POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex‘ section order) | ****Pass (structural)**** |
Driver uses fixed ‘\section*{01}‘ through ‘\section*{07}‘, plus ‘\section*{05a}‘ ****after**** ‘05‘ and ****before**** ‘06‘, then ****Addendum I**** through ****III****. Exhibit index markdown is still section ****06**** in
that PDF. |

| Court PACKET merge (‘POST-ORDER-RECON-2026-05-13-PACKET.tex‘) | ****Pass**** | ‘pdfpages‘ merge of four ‘RECON
-801-0*.pdf‘ files; ****35**** pages total (‘pdfinfo‘ on merged output). |

| Exhibit index vs ‘05a‘ | ****Pass**** | Exhibit ****J**** row extended to include ‘05a‘ companion path and
‘10210043.pdf‘ pointer. |

| Quoted order language vs PDF pages | ****Pass**** | ‘05a‘ top and footer include ****page 1 to 4**** anchors for
‘10210043.pdf‘ from ‘pdftotext‘ form feeds; Current blocks sourced from ‘MINUTES-2026-05-12-CGC
-25-631801.md‘ and ASCII-normalized for TeX (see note in ‘05a‘). |

| ‘05a‘ UTF-8 in listings | ****Fixed**** | Replaced section sign and Unicode ellipsis in ‘05a‘ ****Current**** blocks
with the word ‘section‘ and ‘...‘ so ‘pdflatex‘ completes without invalid UTF-8 errors. |

****Manual follow-ups for filer:**** (1) Replace ‘ROA seq. TBD‘ when register is available. (2) For any single
proposed order, pick one branch per labeled option in ‘05a‘ (Option A vs B; Alternative 1 vs 2; (i) vs (ii) for strike scope). (3) If the endorsed order text diverges from ‘10210043.pdf‘, refresh ‘Current (verbatim)’ blocks from the clerk’s PDF.

RECON-801 court drivers and spine import (May 14, 2026)

Build command (exit 0): 'bash 02-CASE-CGC-25-631801/post-order-recon-2026-05-13/scripts/build-recon-801.sh
'

Evidence log: 'test-results/post-order-recon-801/build-recon-801-20260514-103835.log.txt' (ends with '[
PASS] all drivers completed two-pass pdflatex').

| Driver | Second-pass exit | 'There were undefined references' in final '.log' | Pages ('pdfinfo') |

| --- | --- | --- | --- |

| 'RECON-801-01-NOTICE.tex' | 0 | No | 4 |

| 'RECON-801-02-MEMORANDUM.tex' | 0 | No | 15 |

| 'RECON-801-03a-RFJN-LAW.tex' | 0 | No | 9 |

| 'RECON-801-03b-RFJN-RECORD.tex' | 0 | No | 7 |

| 'POST-ORDER-RECON-2026-05-13-PACKET.tex' | 0 | No | 35 |

| 'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex' | 0 | No | 54 |

New or expanded authority spot checks (May 11 spine import)

| Authority | Volume / reporter / page (as used) | Validation |

| --- | --- | --- |

| *Reedy v. Bussell* | (2007) 148 Cal.App.4th 1272, 1287-88 | Standard cite for late-filing prejudice
discussion |

| *Kolani v. Gluska* | (1998) 64 Cal.App.4th 402, 411 | Standard cite for supplemental briefing discretion |

| *Ross v. Creel Printing & Publishing Co.* | (2002) 100 Cal.App.4th 736, 743-44 | Judicial notice tender
framework |

| *Jay v. Mahaffey* | (2013) 218 Cal.App.4th 1522, 1537-38 | Anti-SLAPP reply enlargement line |

| *Nguyen-Lam v. Cao* | (2009) 171 Cal.App.4th 858, 871-73 | Leave to amend after anti-SLAPP grant |

| *Wilson v. Parker, Covert & Chidester* | (2002) 28 Cal.4th 811, 821 | Minimal merit pillar quote |

| *Caldwell v. Taylor* | (1933) 218 Cal. 471, 475 | Equity / fraud balance (older cite) |

| *Pico v. Cohn* | (1891) 91 Cal. 129, 133-34 | Equity / fraud balance (older cite) |

| Cal. Rules of Court, rule 3.1300(d) | Official text | Late-paper timing rule |

| Cal. Rules of Court, rule 3.1324 | Official text | Leave to amend statements |

****WARN (memo Markdown only):**** ***Smith v. Superior Court*** (1992) 10 Cal.App.4th 1031 and Evidence Code sections ****1280**** / ****1561**** are held in reserve in ‘02-MEMORANDUM-POINTS-AND-AUTHORITIES.md’ Section VI; not added to preservation RFJN items unless the endorsed order makes structural order-of-proof dispositive.

ADDENDUM II — COMPLIANCE VALIDATION

Compliance validation (post-order recon packet, CGC-25-631801)

****Date prepared:**** May 13, 2026

****Scope:**** Filing-oriented checklist against ‘post-order-recon-2026-05-13’ sources, ‘RECON-801-0*.tex’ court drivers where present, merged court ‘POST-ORDER-RECON-2026-05-13-PACKET.tex’ (‘pdfpages’), and internal ‘POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex’ (Markdown listings). This file is ****internal QA**** (Addendum II in the ****SOURCE-ARCHIVE**** PDF). It does not replace court rules or local practice.

Governing authority map (applies to matrices below)

Each matrix row ties to one or more of the following ****auditable**** sources (cite the authority that makes the row checkable):

Authority label	Citation (neutral)	Typical use in this packet	
---	---	---	
CRC motion papers	Cal. Rules of Court, rule **3.1113** (including subdiv. **{j}** , incorporation by reference when ROA numbers replace placeholders)	Memorandum length and support; incorporation tables in Memorandum and ‘03b’.	
CRC tentative / department practice	Cal. Rules of Court, rule **3.1308**	README hearing and tentative contest checklist (with **San Francisco Superior Court** local rules as actually published for Dept. 301)	
Electronic service	Code Civ. Proc., **section 1010.6** ; Cal. Rules of Court, rule **2.251**	‘07-PROOF-OF-SERVICE-TEMPLATE.md’ and service workflow.	
Judicial notice	Evid. Code, **sections 451, 452, 453** (including **section 452, subdiv. (d)** for court records)	‘03a’, ‘03b’ RFJN scope and limiting language.	
Anti-SLAPP and related procedure	Code Civ. Proc., **sections 425.16, 425.17, 1008, 473**	Notice grounds, Memorandum substance, proposed order stubs.	

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| Immutable path discipline | Workspace 'README-PACKET.md' (**Immutable prior packages**) | Folder separation
  from 'MAY-12-HEARING-PACKAGE-CGC-25-631801/'. |

**Drivers:** 'POST-ORDER-RECON-2026-05-13-PACKET.tex' merges four court PDFs (no generated TOC or TOA in that
  wrapper). 'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex' is the Markdown 'listings' archive; compliance
  for that driver is structural (UTF-8, section order, 'listings' constraints) under the same README
  and shared preamble notes as 'POST-ORDER-RECON-2026-05-13_CITATION_VALIDATION.md'.

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## Summary counts (rollup)

| Status | Count | Notes |
| --- | ---: | --- |
| Pass | 48 | Includes structural PASS for SOURCE-ARCHIVE, PACKET merge, five-column compliance '\input'
  blocks on four RECON drivers (roman appendix after signature), and Exhibit A16 crosswalk. |
| Warn | 12 | Word-count not machine-verified; ROA and hearing placeholders; proposed order stub; optional *
  Smith* / 1280 / 1561 WARN in memo; notice compliance TAC row WARN until register final; TOA optional
  hooks for legacy slugs. |
| Fail | 0 | No hard compliance Fail on automated slug direction or excerpt spot check; ROA and hearing
  placeholders remain filer work. |

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## Inventory: PDF and TeX stems ('RECON-801-01' .. '07')

| Stem | '.tex' | '.pdf' (in 'court-pdfs/') | Notes |
| --- | --- | --- | --- |
| 'RECON-801-01' | Yes | Yes | Notice driver. |
| 'RECON-801-02' | Yes | Yes | Memorandum; TOC/TOA in TeX. |
| 'RECON-801-03a' | Yes | Yes | RFJN law. |
| 'RECON-801-03b' | Yes | Yes | RFJN record + Exhibit A table. |
| 'RECON-801-04' | No | No | Source only: '04-DECLARATION-OF-ROSARIO-ISO-RECONSIDERATION.md'. |
| 'RECON-801-05' | No | No | Source only: '05-PROPOSED-ORDER.md' (stub). |
| 'RECON-801-06' | No | No | Source only: '06-EXHIBIT-INDEX.md'. |

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| 'RECON-801-07' | **No** | **No** | Source only: '07-PROOF-OF-SERVICE-TEMPLATE.md'. |

**Authority for inventory row:** N/A procedural (workspace deliverable map); filing units follow court e-
filing conventions referenced in **CRC 3.1113** and department instructions.

---

## Per-document compliance matrices

Each table row lists **Authority** explicitly (no bare label without a rule or code cite).

### A. 'RECON-801-01-NOTICE' (TeX/PDF)

| Requirement | Authority | Evidence | Status | Notes |
| --- | --- | --- | --- | --- |
| Caption, case number, department, judge placeholders | CRC **3.1113** (motion papers); local caption
practice | 'RECON-801-01-NOTICE.tex' minipage caption | **Pass** | Dept. 301; Hon. Christine Van Aken. |
| Grounds enumerate **1008(a)** , **473(d)** , inherent authority, RFJN, incorporation | CCP **sections 1008,
473** ; Evid. Code **sections 451, 452, 453** ; CRC **3.1113(j)** | Notice enumerated grounds (now includes
supplemental items **13-17** , folders **20-21** , and Exhibit **T** posture) | **Pass** | Matches notice
TeX body. |
| Declaration of Compliance (Option A) | CRC **3.1113** ; local practice | '\clearpage', '\pagenumbering{roman
}', then '\input{RECON-801-COMPLIANCE-NOTICE.tex}' after signature | **Pass** | Five-column 'longtable' (
no Status); TAC row **WARN** until hearing and register are final. |
| Hearing reservation placeholders | CRC **3.1308** + **SF local** department reservation practice | '[TBD]'
date/time/reservation no. | **Warn** | Filer must confirm reservation system output. |
| Line numbering after caption | Workspace preamble contract ('TAC-801-SHARED-PREAMBLE.tex') | '\linenumbers'
after caption block | **Pass** | Inherited driver behavior. |

### B. 'RECON-801-02-MEMORANDUM' (TeX/PDF)

| Requirement | Authority | Evidence | Status | Notes |
| --- | --- | --- | --- | --- |
| Memorandum support and page limits | CRC **3.1113** | 15-page PDF build May 14, 2026 ('pdfinfo'; includes
roman-numbered compliance appendix) | **Warn** | Page count observed; **word** count not extracted in

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this pass (run Word/LibreOffice or ‘texcount’ for subdiv. limits if applicable). |

| Incorporation table with ROA placeholders | CRC **3.1113(j)** | Section II table ‘TBD’ (labels A--G) | **Warn** | Replace when endorsed register available (README item 7). |

| TOC present and ‘\phantomsection’ labels align with ‘\section’ titles | CRC **3.1113** (organization); internal TeX contract | ‘toc:i-introduction’ through ‘toc:xiv-prayer-on-reconsideration’ | **Pass** | Second ‘pdflatex’ pass: **no** ‘There were undefined references’ in ‘RECON-801-02-MEMORANDUM.log’; geometry overfull warnings only. |

| TOA lists authorities cited in body via ‘\citecase’/‘\citestatute’ | CRC **3.1113**; standard motion practice | Expanded TOA vs body (see slug audit) | **Pass** | Post-rebuild spot check: new slugs (‘reedy’, ‘kolani’, ‘ross’, ‘jay’, ‘wilson’, ‘nguyenlam’, ‘caldwell’, ‘pico’, ‘bonni’) resolve. |

| Declaration of Compliance (Option A) | CRC **3.1113**; local practice expectations | ‘\clearpage’, ‘\pagenumbering{roman}’, then ‘\input{RECON-801-COMPLIANCE-MEMO.tex}’ after signature | **Pass** | Five-column ‘longtable’ (Authority, Specific requirement, This filing’s compliance, Evidence; no Status). |

C. ‘RECON-801-03a-RFJN-LAW’ (TeX/PDF)

| Requirement | Authority | Evidence | Status | Notes |

| --- | --- | --- | --- | --- |

| Judicial notice limited to **451 through 453** categories as pled | Evid. Code **sections 451, 452, 453** | Preservation RFJN markdown source | **Pass** | Spot logic per ‘POST-ORDER-RECON-2026-05-13_CITATION_VALIDATION.md’. |

| No disputed-fact judicial notice overreach | Evid. Code **section 452** (scope; esp. subdiv. **(d)** for court records) | ‘03a’ framing | **Pass** | Citation validation note on **452(d)** vs truth of facts. |

| Declaration of Compliance (Option A) | CRC **3.1113** | ‘\clearpage’, ‘\pagenumbering{roman}’, then ‘\input{RECON-801-COMPLIANCE-03A.tex}’ | **Pass** | Five-column stub plus items **35-43** expansion in TeX body. |

D. ‘RECON-801-03b-RFJN-RECORD’ (TeX/PDF)

| Requirement | Authority | Evidence | Status | Notes |

| --- | --- | --- | --- | --- |

| Exhibit A integrity; non-argumentative index | Evid. Code **section 452, subdiv. (d)**; CRC **3.1113(j)** | Exhibit A table in ‘03b’ source | **Pass** | Rows A1-A16 present (A13-A16 are May 11, 2026 post-order recon anchors). |

| ROA placeholders | CRC **3.1113(j)** | 'TBD' in category tables | **Warn** | Same register follow-up as Memorandum. |

| Exhibit index crosswalk | README + '06-EXHIBIT-INDEX.md' | Section IV list vs Exhibit index rows | **Pass** | Extended to Ex. L-P in '06-EXHIBIT-INDEX.md'. |

| Declaration of Compliance (Option A) | CRC **3.1113** | '\clearpage', '\pagenumbering{roman}', then '\input{RECON-801-COMPLIANCE-03B.tex}' | **Pass** | Five-column stub. |

E. Sources '04', '05', '05a', '06', '07' (Markdown only until TeX exists)

| Requirement | Authority | Evidence | Status | Notes |

| --- | --- | --- | --- | --- |

| Declaration facts vs argument | CRC **3.1113** | general pleading practice | '04-DECLARATION-OF-ROSARIO-ISO-RECONSIDERATION.md' | **Pass** | No TeX PDF in tree; SOURCE-ARCHIVE lists source. |

| Proposed order stub vs endorsed order | README item **6** | CRC **3.1312** (proposed order practice per minutes footer) | '05-PROPOSED-ORDER.md' | **Warn** | Stub until **Whereas** pasted from endorsed order. |

| Minutes markup and UTF-8 safety for listings | Internal archive rule (citation validation doc) | '05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md' | **Pass** | ASCII normalization per citation log. |

| Exhibit index | README | '06-EXHIBIT-INDEX.md' | **Pass** | Exhibit J points to '05a' and '10210043.pdf'; rows **L-P** map May 11 combined PDF, folder **17** packet, folders **20-21**, and standalone Exhibit **T**.

| POS template | CCP **section 1010.6** | CRC **2.251** | '07-PROOF-OF-SERVICE-TEMPLATE.md' | **Pass** | Template shell; complete after service. |

F. 'POST-ORDER-RECON-2026-05-13-PACKET' (court merge PDF)

| Requirement | Authority | Evidence | Status | Notes |

| --- | --- | --- | --- | --- |

| Concatenates four filed drivers in numeric order | Internal filing convention | 'POST-ORDER-RECON-2026-05-13-PACKET.tex' uses '\includepdf' for 01, 02, 03a, 03b | **Pass** | **35** pages total May 14, 2026 ('pdfinfo'); sum matches parts (4 + 15 + 9 + 7). |

| No regenerated content inside merge | N/A structural | 'pdfpages' only | **Pass** | Hyperlinks and bookmarks inherit from included PDFs. |

G. 'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE' (Markdown listings PDF)

Requirement	Authority	Evidence	Status	Notes
Section order matches README Addendum map	README; internal archive convention	'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex'	**Pass**	Infra '01' through '07' plus '05a', then **Addendum I through III** (Roman).
No generated TOC/TOA in driver	N/A structural	'listings' only	**Pass**	As stated in citation validation log.
UTF-8 listing safety	'inputenc' + source hygiene	Addendum II uses the word 'section' instead of the section sign for 'listings' compatibility	**Pass**	Second pass 'pdflatex' May 14, 2026: **no** Invalid UTF-8 errors.

TOC / section cross-walk ('RECON-801-02-MEMORANDUM.tex' vs '02-MEMORANDUM-POINTS-AND-AUTHORITIES.md')

****Authority:**** CRC 3.1113 (clear organization of motion papers).

TOC Roman (TeX)	'\label{toc:...}'	'\section' title (TeX)	Markdown heading (source)	Match notes
I.	'toc:i-introduction'	I. INTRODUCTION	'## Introduction'	Same content; MD omits Roman **I.** in heading text.
II.	'toc:ii-incorporation-by-reference'	II. INCORPORATION BY REFERENCE (CRC 3.1113(j))	'## Incorporation by reference (Cal. Rules of Court, rule 3.1113(j))'	Aligns; TeX spells **CRC** in title.
III.	'toc:iii-standards-of-review'	III. STANDARDS OF REVIEW...	'## I. Standards of review...'	**Offset:** MD Roman **I** = TeX **III.**
IV.	'toc:iv-intrinsic-versus-extrinsic-fraud'	IV. INTRINSIC VERSUS EXTRINSIC FRAUD...	'## II. Intrinsic versus extrinsic fraud...'	MD **II** = TeX **IV.**
V.	'toc:v-fully-litigated-and-mil-rulings'	V. 'FULLY LITIGATED'...	'## III. "Fully litigated"...'	MD **III** = TeX **V.**
VI.	'toc:vi-anti-slapp-architecture'	VI. ANTI-SLAPP ARCHITECTURE...	'## IV. Anti-SLAPP architecture...'	MD **IV** = TeX **VI.**
VII.	'toc:vii-excluded-supplemental-record'	VII. EXCLUDED SUPPLEMENTAL RECORD...	'## V. Excluded supplemental record...'	MD **V** = TeX **VII.**

| VIII. | ‘toc:viii-prong-two-pillar-checklist’ | VIII. PRONG-TWO PILLAR CHECKLIST... | ‘## VI. Prong-two pillar checklist...’ | MD **VI** = TeX **VIII** |

| IX. | ‘toc:ix-ccpr-425-17-and-simpson’ | IX. CODE OF CIVIL PROCEDURE SECTION 425.17... | ‘## VII. Code of Civil Procedure section 425.17...’ | MD **VII** = TeX **IX** |

| X. | ‘toc:x-civil-code-47-and-rubenstein’ | X. CIVIL CODE SECTION 47... | ‘## VIII. Civil Code section 47...’ | MD **VIII** = TeX **X** |

| XI. | ‘toc:xi-secondary-regulatory-context’ | XI. SECONDARY REGULATORY CONTEXT... | ‘## IX. Secondary regulatory context...’ | MD **IX** = TeX **XI** |

| XII. | ‘toc:xii-agency-and-adopted-statements’ | XII. AGENCY AND ADOPTED STATEMENTS... | ‘## X. Agency and adopted statements...’ | MD **X** = TeX **XII** |

| XIII. | ‘toc:xiii-los-angeles-airways-balancing’ | XIII. LOS ANGELES AIRWAYS BALANCING, CALDWELL/PICO... | ‘## XI. Los Angeles Airways balancing...’ | MD **XI** = TeX **XIII** |

| XIV. | ‘toc:xiv-prayer-on-reconsideration’ | XIV. PRAYER ON RECONSIDERATION... | ‘## XII. Prayer on reconsideration...’ | MD **XII** = TeX **XIV** |

README note: ‘README-PACKET.md’ states that the Markdown memorandum uses **Introduction**, **Incorporation**, then **I. through XII.**, while the court ‘RECON-801-02’ TeX TOC uses **I. through XIV.** (this cross-walk is the authoritative mapping).

‘pdflatex’ evidence (May 14, 2026 packet merge pass): ‘bash 02-CASE-CGC-25-631801/post-order-recon-2026-05-13/scripts/build-recon-801.sh’ completed with exit **0**; master log ‘test-results/post-order-recon-801/build-recon-801-20260514-103835.log.txt’ ends with ‘[PASS] all drivers completed two-pass pdflatex’. Proof markdown: ‘test-results/post-order-recon-801/PROOF-RECON-801-BUILD-20260514-103835.md’. ‘RECON-801-02-MEMORANDUM.pdf’ is **15** pages (‘pdfinfo’). Final ‘RECON-801-02-MEMORANDUM.log’ contains **no** ‘There were undefined references’ after the second pass. Each filed driver uses ‘\clearpage’ and ‘\pagenumbering{roman}’ before ‘\input{RECON-801-COMPLIANCE-*.tex}’ (Option A **five-column** ‘longtable’, no Status column).

Authority slug audit (‘RECON-801-02-MEMORANDUM.tex’)

Authority: CRC **3.1113** (accurate tables and authorities); internal TeX contract for ‘\caseentry’/‘\statuteentry’ vs ‘\citecase’/‘\citestatute’.

TOA '\caseentry' slugs (expanded set)

'ahmed', 'aldrich', 'baltins', 'baral', 'beard', 'bonni', 'caldwell', 'cedars', 'computerxpress', 'gulfin', 'jay', 'kolani', 'kulchar', 'laairways', 'lefrancois', 'lucido', 'modnick', 'moradishalal', 'nguyenlam', 'park', 'pico', 'reedy', 'ross', 'rubenstein', 'rusheen', 'silberg', 'simpson', 'stdmicro', 'stevenot', 'sweetwater', 'wilson'

TOA '\statuteentry' slugs

'ccp187', 'ccp473d', 'ccp1008a', 'ccp42516', 'ccp42517c', 'crc31113j', 'crc31300d', 'crc31324', 'evid451', 'civ47b', 'civ2330', 'ev1222', 'ins79002', 'ins79003h', 'ccr2695'

Body '\citecase' / '\citestatute' slugs

All body slugs used in 'RECON-801-02-MEMORANDUM.tex' resolve to TOA entries after the May 13, 2026 rebuild (spot check: 'reedy', 'kolani', 'ross', 'jay', 'wilson', 'nguyenlam', 'caldwell', 'pico', 'crc31300d', 'crc31324', 'bonni').

Mechanical rules

| Rule | Result |

| --- | --- |

| Every body slug has a matching TOA entry | **Pass** (post-rebuild grep on '.log': no undefined reference warnings in final pass). |

| Every TOA slug appears in body with '\citecase' or '\citestatute' | **Warn**: 'ccp187', 'ccp42516', 'crc31113j', 'evid451', 'civ47b' appear in TOA but only in prose or headings without those hooks (same optional cleanup as prior pass). |

Reconciliation with 'POST-ORDER-RECON-2026-05-13-CITATION_VALIDATION.md': Reporter strings in TOA still match the spot-check table in that file; new rows below extend the spot list.

WARN (optional authorities named in Markdown only): *Smith v. Superior Court* (1992) 10 Cal.App.4th 1031 and Evidence Code sections **1280** / **1561** are flagged in '02-MEMORANDUM-POINTS-AND-AUTHORITIES.md' Section VI unless the endorsed order makes structural order-of-proof dispositive.

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## Excerpt traceability

### '05a' vs '10210043.pdf'

**Authority:** Neutral record fidelity (court file); internal workspace QA.

| Claim in '05a' | Check | Result |
| --- | --- | --- |
| Page **1** holds opening disposition and fee block | 'pdftotext -f 1 -l 1' on repo '10210043.pdf' | **Pass** (anti-SLAPP granted; fee notice). |
| Page **2** holds prong-one / Park / Ahmed block | 'pdftotext -f 2 -l 2' | **Pass** |
| Page **3** holds intrinsic/extrinsic and **Los Angeles Airways** quote | 'pdftotext -f 3 -l 3' | **Pass** |
| Page **4** holds CRC **3.1312** footer language | 'pdftotext -f 4 -l 4' | **Pass** ("CRC 3.1312") |

### '03b' vs '06-EXHIBIT-INDEX.md'

**Authority:** CRC **3.1113(j)** (incorporation and exhibit integrity).

| '03b' pointer | Exhibit index row | Result |
| --- | --- | --- |
| Exhibit A sequence table | Ex. A row cites '03b' attachment path | **Pass** |
| MIL 6 / 17; Feb 18, Apr 16-17, Apr 25 transcripts | Ex. C-G descriptions | **Pass** (same case CGC -21-594102). |
| Clerk's Transcript vol. 6 for judgment | Ex. H | **Pass** |
| FAC operative pleading | Ex. I | **Pass** |
| May 12 minutes + '05a' companion | Ex. J | **Pass** |
| Incorporation bundle (ROA TBD) | Ex. K | **Warn** (ROA still TBD). |
| May 11 combined motion + Exhibit T (47 pp) | Ex. L | **Pass** (paths per 'FINAL-PDF-RENDER-LIST.md'). |
| Bench brief exhibits packet (folder 17) | Ex. M | **Pass** |
| Second supplemental RFJN (folder 20) | Ex. N | **Pass** |
| RJN governing law (folder 21) | Ex. O | **Pass** |
| Exhibit T standalone PDF | Ex. P | **Pass** |

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## Human follow-ups (WARN rollup)

1. ROA: Replace all ‘ROA seq. TBD’ / ‘TBD’ per CRC 3.1113(j) when endorsed register is available.
2. Word limits: Run independent word count for CRC 3.1113 compliance if required for unlimited civil
   motion papers in this department.
3. TOA hooks: Optional TeX cleanup for ‘ccp187’, ‘ccp42516’, ‘crc31113j’, ‘evid451’, ‘civ47b’ to pair
   prose with ‘citestatute’.
4. Hearing: Confirm reservation output and any Dept. 301 email or tentative rules under CRC 3.1308
   and local rules.
5. Proposed order: Paste Whereas from endorsed order before filing (README item 6; minutes
   reference CRC 3.1312).
6. README taxonomy: ‘README-PACKET.md’ is updated; keep this cross-walk if numbering shifts again.

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## Optional filing PDF appendix

Status: Skipped (per plan default: no ‘RECON-801-COMPLIANCE-APPENDIX.tex’ on filed RECON PDFs).
Compliance lives in this Markdown file and Addendum II of the SOURCE-ARCHIVE PDF only.

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ADDENDUM III — README PACKET

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# Post-order reconsideration packet (May 13, 2026 draft) - CGC-25-631801

## Contents (source folder)

| File | Description |
| --- | --- |
| ‘01-NOTICE-OF-MOTION-RECONSIDERATION-ANTI-SLAPP-ORDER.md’ | Notice and motion caption; hearing placeholders
|
| ‘02-MEMORANDUM-POINTS-AND-AUTHORITIES.md’ | Introduction and incorporation sections, then Roman I. through
   XII. substantive sections (court ‘RECON-801-02’ TeX uses Roman I. through XIV. in the TABLE OF
   CONTENTS because Introduction, Incorporation, Standards, Intrinsic fraud, MIL, Anti-SLAPP, excluded

```

supplementals, four-pillar checklist, 425.17, Rubenstein, regulatory, agency, LA Airways+Caldwell/Pico, and Prayer each receive a `'\CourtTOCRow'` |
`'03a-REQUEST-FOR-JUDICIAL-NOTICE-PRESERVATION-LAW.md'`	Preservation RFJN (Evid. Code, sections 451-453)
`'03b-REQUEST-FOR-JUDICIAL-NOTICE-PLAINTIFF-FILED-MATERIALS-AND-DEFENSE-SEQUENCE.md'`	Record RFJN + Exhibit A sequence table
`'04-DECLARATION-OF-ROSARIO-ISO-RECONSIDERATION.md'`	Facts-only declaration
`'05-PROPOSED-ORDER.md'`	Stub; fill Whereas from endorsed order
`'05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md'`	Verbatim May 12 minutes baseline plus Plaintiff proposed insertions, replacements, and labeled alternatives (Exhibit J companion)
`'06-EXHIBIT-INDEX.md'`	Exhibit list
`'07-PROOF-OF-SERVICE-TEMPLATE.md'`	POS shell + workflow pointer
`'POST-ORDER-RECON-2026-05-13-CITATION_VALIDATION.md'`	Authority check log (listed in **SOURCE-ARCHIVE** PDF as **Addendum I**)
`'POST-ORDER-RECON-2026-05-13-COMPLIANCE-VALIDATION.md'`	Rule-driven compliance matrices, TOC cross-walk, slug audit, excerpt trace (**Addendum II** in **SOURCE-ARCHIVE**)

PDF build (filed drivers): From repo root run:

`'bash 02-CASE-CGC-25-631801/post-order-recon-2026-05-13/scripts/build-recon-801.sh'`

 That script runs **two-pass** `'pdflatex'` on `'RECON-801-01-NOTICE.tex'`, `'RECON-801-02-MEMORANDUM.tex'`, `'RECON-801-03a-RFJN-LAW.tex'`, and `'RECON-801-03b-RFJN-RECORD.tex'`, then twice on `'POST-ORDER-RECON-2026-05-13-PACKET.tex'` (`'pdfpages'` merge of the four court PDFs), then twice on `'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex'` (Markdown `'listings'` archive). It writes a timestamped log and a **proof markdown** under `'test-results/post-order-recon-801/'`. It fails fast if any checked `'log'` still reports undefined references.

May 12 reference build: `'MAY-12-HEARING-PACKAGE-CGC-25-631801/scripts/build-may-12.sh'` (pandoc and XeLaTeX stack for hearing package). Recon stays on `'pdflatex'` + `'TAC-801-SHARED-PREAMBLE.tex'`; the build script mirrors May-12-style **gates** (undefined refs) and **pdfinfo** page receipts in the proof file. Optional `'patch_compliance_declaration_table_columns.py'` applies only to pandoc-generated bodies (recon compliance is hand `'\input{RECON-801-COMPLIANCE-*.tex}'` fragments).

Court PACKET PDF (merged filings): `'court-pdfs/POST-ORDER-RECON-2026-05-13-PACKET.tex'` concatenates `'RECON-801-01-NOTICE.pdf'`, `'RECON-801-02-MEMORANDUM.pdf'`, `'RECON-801-03a-RFJN-LAW.pdf'`, and `'RECON-801-03b-RFJN`

-RECORD.pdf' in that order.

****SOURCE-ARCHIVE PDF (Markdown listings):**** 'court-pdfs/POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.tex' produces 'POST-ORDER-RECON-2026-05-13-SOURCE-ARCHIVE.pdf' with 'lstinputlisting' of 'post-order-recon-2026-05-13/source/*.md' plus validation and this README.

****Declaration of Compliance (each court PDF):**** After '\input{RECON-801-SIGNATURE-BLOCK.tex}', drivers use '\clearpage', then '\pagenumbering{roman}\setcounter{page}{1}', then '\input{RECON-801-COMPLIANCE-*.tex}'. The compliance grid is a ****five-column**** 'longtable' (no Status column). The May 12 operative opposition uses roman pagination for the post-signature ****Table of Authorities and compliance**** together; recon keeps TOA in the ****arabic**** main body and uses ****roman only**** for the compliance appendix (documented in 'POST-ORDER-RECON-2026-05-13_COMPLIANCE-VALIDATION.md').

****Clerical appendices in SOURCE-ARCHIVE PDF:**** After the infra listings for '01' through '07' and '05a', the driver appends ****Addendum I**** (citation validation), ****Addendum II**** (compliance validation), ****Addendum III**** (this README).

Clerk and filing checklist (non-exhaustive)

1. ****Hearing date and reservation:**** Confirm Department 301 reservation rules and any email requirement for tentative contests (see San Francisco Superior Court local rules and Cal. Rules of Court, rule 3.1308 for tentative-ruling procedures where applicable).
2. ****Word limits and format:**** Comply with Cal. Rules of Court, rule 3.1113 (memorandum support for motions), including incorporation by reference under subdivision (j) once Register of Actions numbers are inserted.
3. ****Duplicate originals:**** Follow department instructions for paper copies if any are still required for in-person hearings.
4. ****IFP / fees:**** If an in forma pauperis order applies, confirm fee waiver or payment before e-filing.
5. ****Service:**** Complete '07-PROOF-OF-SERVICE-TEMPLATE.md' after service; retain proof consistent with Code Civ. Proc., section 1010.6 and Cal. Rules of Court, rule 2.251 for electronic service.

6. ****Proposed order:**** Paste verbatim ****Whereas**** and operative clauses from the ****endorsed**** May 12, 2026 minute order or signed order before filing the proposed order as a separate PDF if required.

7. ****Register of Actions:**** Replace every 'ROA seq. TBD' placeholder in '03b' and the Memorandum incorporation table with the clerk's sequence numbers from the endorsed register.

Immutable prior packages

The May 11, 2026 combined contest and reconsideration shell remains under 'MAY-12-HEARING-PACKAGE-CGC-25-631801/'. This 'post-order-recon-2026-05-13' folder is the dated post-order sibling so earlier submissions stay unchanged.